

SOLICITATION, OFFER AND AWARD			1. This Contract Is A Rated Order Under DPAS (15 CFR 700) ➡		Rating DOA2	Page 1	of 93	Pages
2. Contract Number		3. Solicitation Number SPRRA2 - 24 - R - 0081		4. Type of Solicitation ☐ Sealed Bid (IFB) ☒ Negotiated (RFP)		5. Date Issued 2024SEP24		6. Requisition/Purchase Number SEE SCHEDULE
7. Issued By DEFENSE LOGISTICS AGENCY DLA-AVN-AHCA 5201 MARTIN ROAD/DLA-AVN-AH REDSTONE ARSENAL AL 35898-7340			Code SPRRA2	8. Address Offer To (If Other Than Item 7)				

NOTE: In sealed bid solicitations 'offer' and 'offeror' mean 'bid' and 'bidder'.

SOLICITATION

9. Sealed offers in original and _____ copies for furnishing the supplies or services in the Schedule will be received at the place specified in item 8, or if handcarried, in the depository located in _____ until 01:00pm (hour) local time 2025JAN22 (Date).

Caution - Late Submissions, Modifications, and Withdrawals: See Section L, Provision No. 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. For Information Call: ➡	A. Name THERESA MARY M. BESHENICH	B. Telephone (No Collect Calls)			C. E-mail Address THERESA.BESHENICH@DLA.MIL
		Area Code (000)	Number 000-0000	Ext.	

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OFFER (Must be fully completed by offeror)

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the price set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. Discount For Prompt Payment (See Section I, Clause No. 52.232-8) ➡	10 Calendar Days (%)	20 Calendar Days (%)	30 Calendar Days (%)	Calendar Days (%)
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14. Acknowledgment of Amendments (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):

15A. Name and Address of Offeror	Code	Facility	16. Name and Title of Person Authorized to Sign Offer (Type or Print)				
15B. Telephone Number			15C. Check if Remittance Address is ☐ Different From Above - Enter such Address In Schedule		17. Signature		18. Offer Date
Area Code	Number	Ext.					

AWARD (To be completed by Government)

19. Accepted As To Items Numbered		20. Amount		21. Accounting And Appropriation			
22. Authority For Using Other Than Full And Open Competition: ☒ 10 U.S.C. 2304(c)(1) ☐ 41 U.S.C. 253(c)()				23. Submit Invoices To Address Shown In (4 copies unless otherwise specified) ➡			Item 25
24. Administered By (If other than Item 7) Code				25. Payment Will Be Made By Code			
26. Name of Contracting Officer (Type or Print)				27. United States Of America (Signature of Contracting Officer)			28. Award Date

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-24-R-0081 PIIN/SIIN	Page 2 of 93 MOD/AMD
Name of Offeror or Contractor:		

SECTION A - SUPPLEMENTAL INFORMATION

Buyer Name: THERESA MARY M. BESHENICH
 Buyer Office Symbol/Telephone Number: DLA-AVN-AHCA/(000)000-0000
 Type of Contract 1: Firm Fixed Price
 Kind of Contract: Supply Contracts and Priced Orders

- *** End of Narrative A0000 ***
- A-1. THIS REQUIREMENT IS SOLE SOURCED TO LOCKHEED MARTIN, CAGE 64059. IAW 10 U.S.C.3204(A)(1) FAR 6.302-1; ONLY ONE RESPONSIBLE SOURCE, AND NO OTHER TYPE OF SUPPLIES OR SERVICES WILL SATISFY AGENCY REQUIREMENTS.
- A-2. THIS 5 YEAR INDEFINITE DELIVERY REQUIREMENT (IDR) TYPE FIRM-FIXED PRICE EFFORT IS IN SUPPORT OF THE PATRIOT MISSILE SYSTEMS. SUBSEQUENT AWARD WILL RESULT IN A MODIFICATION TO THE LOCKHEED MARTIN CAPTAINS OF INDUSTRY (COI) CONTRACT SPE4AX9000S SUBSUMABLE CONTRACT SPRA224D0011.
- A-3. FIRST ARTICLE (FAT) MAY BE REQUIRED, AND WHEN APPLICABLE THE REQUIREMENT WILL BE DOCUMENTED AT THE CLIN LEVEL. FAT REPORT SHALL BE SUBMITTED IN ENGLISH. (FAT UNIT SHALL NOT BE RETAINED AS A MATERIAL STANDARD. TEST ITEM MAY OR MAY NOT BE DESTROYED AS PART OF TESTING). IF FAT IS WAIVED, WAIVER SHALL BE DOCUMENTED AT THE CLIN LEVEL.
- A-4. IUID MARKINGS ARE REQUIRED. THE DFARS CLAUSE 252.211-7003, ITEM IDENTIFICATION AND VALUATION, IS INCLUDED IN SECTION F.
- A-5. ARMS EXPORT CONTROL MAY BE REQUIRED AND WHEN APPLICABLE (PER THE PART TDPL) THE REQUIREMENT WILL BE DOCUMENTED AT THE CLIN LEVEL. WHEN APPLICABLE THE ITEM TECHNICAL DATA PACKAGE WILL CONTAIN TECHNICAL DATA WHOSE EXPORT IS RESTRICTED BY THE ARMS EXPORT CONTROL ACT (TITLE 22 U.S.C., SEC 2751 ET SEQ.) OR EXECUTIVE ORDER 12470. VIOLATION OF THESE EXPORT LAWS ARE SUBJECT TO SEVERE CRIMINAL PENALTIES. EXPORT CONTROL REQUIRES THE APPLICABLE CERTIFICATIONS TO BE CURRENT FOR BOTH THE QUOTER AND MANUFACTURER. THE OFFEROR AND ANY SOURCE(S) OF SUPPLY IT WILL USE FOR CONTRACT PERFORMANCE MUST HAVE AN ACTIVE UNITED STATES/CANADA JOINT CERTIFICATION PROGRAM (JCP) CERTIFICATION TO ACCESS EXPORT-CONTROL DTA. DLA DOES NOT INTEND TO DELAY AWARD IN ORDER FOR AN INELIGIBLE OFFEROR OR ITS SOURCE(S) OF SUPPLY TO APPLY FOR AND RECEIVE AUTHORITY TO ACCESS THE EXPORT-CONTROLLED DATA.
- A-6. SERIAL NUMBERING IS REQUIRED.
- A-7. FIT CHECK IS NOT REQUIRED.
- A-8. BAR CODE MARKINGS ARE REQUIRED.
- A-9. IUID MARKINGS ARE REQUIRED. THE DFARS CLAUSE 252.211-7003 ITEM IDENTIFICATION AND VALUATION IS INCLUDED IN SECTION F.
- A-10. SPRA224R0081 FULLY RELIES UPON THE TERMS AND CONDITIONS OF LOCKHEED MARTIN CAGE 64059 SUBSUMABLE SPRA224D0011, UNLESS OTHERWISE INDICATED. THEREFORE, SOLICITATION HAS BEEN STREAMLINED TO ADDRESS CLAUSES AND PROVISIONS SPECIFIC TO THE REQUIREMENTS HEREIN.

A-10. OFFERS SHALL BE SUBMITTED IN ACCORDANCE WITH FAR 15.208. FACSIMILE SUBMISSIONS ARE NOT AUTHORIZED. CONTRACTOR MAY SUBMIT OFFER TO THE CONTRACT SPECIALIST POINT OF CONTACT INFORMATION ANNOTATED BELOW:

ATTN: THERESA BESHENICH
 DLA AVIATION-HUNTSVILLE, BLDG. 5202
 REDSTONE ARSENAL, AL 35898-5200
 THERESA.BESHENICH@DLA.MIL

A-11. CONTRACTOR POINT OF CONTACT INFORMATION:

NAME: _____
 TELEPHONE NUMBER: _____
 E-MAIL ADDRESS: _____

A-12. DCMA ACO POINT OF CONTACT INFORMATION:

NAME: _____
 TELEPHONE NUMBER: _____
 E-MAIL ADDRESS: _____

A-13. PLEASE SUBMIT REPORTS, INQUIRIES, AND POST AWARD ACTIONS TO:

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Name of Offeror or Contractor:

DLAHSVPOSTAWARDTEAM@DLA.MIL
5206 MARTIN ROAD
REDSTONE ARSENAL, AL 35898

WITH AN INFORMATION COPY TO THE ADMINISTERING CONTRACT OFFICER.

A-14. SUBCONTRACTING PLAN MAY BE REQUIRED.

_____ APPROVE SUBCONTRACTING PLAN IS HEREBY INCORPORATED BY REFERENCE AND MADE A PART OF THIS CONTRACT. THE EFFECTIVE PERIOD OF THIS PLAN IS _____ TO _____. WHEN SUBMITTING REPORTS IN ESRS, USE GOVERNMENT NOTIFICATION EMAIL ADDRESS: DLAHSVSUBK@DLA.MIL.

A-15. FUNDS WILL BE OBLIGATED/CITED UPON ISSUANCE OF EACH DELIVERY ORDER.

A-16. ACCELERATED DELIVERY IS ENCOURAGED AND AUTHORIZED AT NO ADDITIONAL COST TO THE GOVERNMENT.

A-17. CERTIFIED COST OR PRICING DATA:

NOTICE: YOUR ATTENTION IS INVITED TO FEDERAL ACQUISITION REGULATION (FAR) 15.403-3, RELATIVE TO THE REQUIREMENTS FOR OBTAINING OTHER THAN CERTIFIED COST OR PRICING DATA. THIS IS CONSIDERED TO BE A SOLE SOURCE REQUIREMENT; THEREFORE, THE OFFEROR IS REQUIRED TO SUBMIT CERTIFIED COST AND PRICING DATA. OFFEROR MAY USE THEIR OWN FORMAT TO PROVIDE, AT A MINIMUM, A BREAKDOWN OF ALL THE COST ELEMENTS TO INCLUDE PROFIT/FEE WHICH COMPRISE THE TOTAL PROPOSED PRICE OR SALES HISTORY. FAILURE TO PROVIDE OTHER THAN COST AND PRICING DATA IF REQUESTED MAY RESULT IN YOUR OFFER BEING CONSIDERED INADEQUATE &/OR DEFICIENT.

A-18. CONTRACTOR TESTED FIRST ARTICLE.

FOR LONG TERM EFFORTS, FIRST ARTICLE TEST PRICING IS MANDATORY REGARDLESS OF INTENT TO REQUEST A WAIVER. ANY PROPOSAL RECEIVED WITHOUT FIRST ARTICLE TEST PRICING WILL BE REJECTED AND DEEMED INELIGIBLE FOR FURTHER AWARD CONSIDERATION.

IF THE OFFEROR HAS RECEIVED A CONTRACTOR PURCHASE ORDER FOR THE SAME NATIONAL STOCK NUMBERED ITEM SOUGHT UNDER THIS SOLICITATION SUBJECT TO A FIRST ARTICLE TEST, THE OFFEROR MUST IDENTIFY THE CONTRACT NUMBER UNDER WHICH THE FIRST ARTICLE IS DUE AND THE DATE ON WHICH THE FIRST ARTICLE IS DUE. THE CONTRACTING OFFICER WILL USE THIS INFORMATION IN MAKING A DETERMINATION AS TO WHETHER FIRST ARTICLE APPROVAL CAN BE MADE UNDER THE CURRENT SOLICITATION. IF THE REQUESTED/REQUIRED DELIVERY FOR THE FAT REPORT/FA SHIP TIME CANNOT BE MET, THE OFFER(S) SHALL PROVIDE A PROPOSED DELIVERY SCHEDULE WITH DETAILS EXPLAINING WHY THE REQUESTED/REQUIRED DELIVERY CANNOT BE MET. THE SUPPLIER SHALL NOTIFY IN WRITING THE TESTING LAB, THE ENGINEERING SUPPORT ACTIVITY, AND THE CONTRACT ADMINISTRATOR WHEN TESTING REPORTS AND/OR SHIPMENTS ARE SUBMITTED IAW CONTRACT REQUIREMENTS TO INCLUDE TRACKING INFORMATION.

FIRST ARTICLE TEST (FAT): TIME IS 3 DAYS. UNITS TO BE TESTED IS 1 EACH. FIRST ARTICLE TEST SHALL BEGIN ON A MUTUALLY AGREED UPON DATE BETWEEN THE GOVERNMENT AND THE CONTRACTOR. THE DATE SHALL OCCUR WITH ENOUGH TIME IN ADVANCE TO BEGIN SCHEDULED DELIVERIES AS DETAILED AT CLIN LEVEL. THE CONTRACTOR SHALL NOTIFY THE CONTRACTING OFFICER IN WRITING 30 DAYS PRIOR TO THE PROPOSED DATE OF FIRST ARTICLE TESTING.

CONTRACTOR FIRST ARTICLE TEST:

NUMBER OF SAMPLES TO BE TESTED: 1 EACH
INSPECTION: ORIGIN (DCMA)
ACCEPTANCE: ORIGIN (DCMA)
DELIVER FOB: DESTINATION
BY: SEE FAT CLINS

FAT CLIN DELIVERY SCHEDULE:

TBD DAYS/DARO CONTRACTOR FAT COMPLETE AND REPORT SUBMISSION
TBD DAYS GOVERNMENT REVIEW AND NOTIFICATION TO CONTRACTOR
TBD DAFAA DELIVERY OF PRODUCTION UNITS
TBD DACA/DARO (SEE FAT CLINS)

FIRST ARTICLE TEST REPORT (FATR) IS DUE 15 DAYS AFTER FAT. THE GOVERNMENT HAS 45 DAYS TO APPROVE/DISAPPROVE THE TEST REPORT. FAT REPORT SHALL BE SUBMITTED IN ENGLISH. THE FIRST ARTICLE TEST REPORT WILL BE SENT ELECTRONICALLY TO: DLAHSVPOSTAWARDTEAM@DLA.MIL. IF THE FILE IS TOO LARGE OR ENCRYPTION IS NEEDED, A DOD SAFE LINK WILL BE SENT TO YOU FOR UPLOAD USING [HTTPS://SAFE.APPS.MIL/](https://SAFE.APPS.MIL/). PLEASE USE THE DLAHSVPOSTAWARDTEAM@DLA.MIL EMAIL ADDRESS TO REQUEST THE LINK.

CONTRACTOR FATR

INSPECTION: ORIGIN

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Name of Offeror or Contractor:

ACCEPTANCE: DESTINATION (WAWF)
SHIP TO: SPRRA1 (DLAHSVPOSTAWARDTEAM@DLA.MIL)
WAWF SUBMITTAL WILL BE A COMBO
ACCEPTANCE OF THE FATR WILL TAKE PLACE FIRST, AND THEN ACCEPTANCE OF FAT BY DCMA WILL COMMENCE.

A-19. LONG LEAD TIME AND OR LONG TERM CONTRACTS

FOR LONG LEAD TIME ITEMS AND/OR LONG TERM CONTRACTS, THE PARTIES RECOGNIZE THERE IS A RISK THAT PART(S) OR COMPONENT(S) REQUIRED FOR PERFORMANCE OF THE CONTRACT/PURCHASE ORDER MAY BECOME UNAVAILABLE DUE TO OBSOLESCENCE. UPON RECEIPT OF THE CONTRACT/PURCHASE ORDER, CONTRACTOR IS RESPONSIBLE FOR VERIFYING ITS SOURCES OF SUPPLY. IF AT ANY TIME DURING THE COURSE OF PERFORMANCE CONTRACTOR BECOMES AWARE THAT IT IS UNABLE TO PROCURE A PART OR COMPONENT NECESSARY TO FULFILL THE REQUIREMENTS OF THE CONTRACT, THE CONTRACTOR SHALL NOTIFY THE CONTRACTING OFFICER IN WRITING WITHIN THIRTY DAYS. NOTIFICATION SHALL INCLUDE CONTRACTORS RECOMMENDATION FOR CORRECTION OF THE PROBLEM, IF POSSIBLE, WITH ESTIMATED COST AND SCHEDULE IMPACT, IF ANY. THE CONTRACTING OFFICER WILL DETERMINE THE APPROPRIATE COURSE OF ACTION AND PROVIDE DIRECTION TO THE CONTRACTOR. IN NO EVENT WILL CONTRACTOR PROCEED WITH IMPLEMENTATION OF ITS RECOMMENDATION WITHOUT WRITTEN DIRECTION FROM THE CONTRACTING OFFICER. AT THE SOLE DISCRETION OF THE CONTRACTING OFFICER, THE CONTRACT MAY BE TERMINATED IN WHOLE OR IN PART, AS APPROPRIATE.

A-20. PRODUCT QUALITY DEFICIENCY REPORTS (PQDRs)

THE PRODUCT QUALITY DEFICIENCY REPORT PROGRAM (ARMY REGULATION 702-7) WILL BE USED WHEN CONTRACTORS: 1) DELIVER DEFICIENT ITEMS OR 2) RECEIVE DEFICIENT ITEMS FROM A DOD SUPPLY CHAIN IN SUPPORT OF ARMY REQUIREMENTS. WHEN REQUESTED, THE CONTRACTOR SHALL ASSIST THE COGNIZANT CONTRACT ADMINISTRATION OFFICE IN EVALUATING PQDRS AND EXHIBITS FOR DEFECTS REPORTED ON ITEMS MANUFACTURED UNDER THIS CONTRACT TO DETERMINE THE ROOT CAUSE FOR DEFICIENCIES. CORRECTIVE ACTION AND PREVENTATIVE ACTION TO PRECLUDE RECURRENCE OF DISCREPANCIES SHALL BE AN INTEGRAL PART OF THE CONTRACTORS QUALITY PROGRAM. THESE DEFECTS MAY BE REPORTED FROM ANY DOD ACTIVITY THAT DISCOVERS A DEFECTIVE ITEM.

A-21. ECONOMIC ORDER QUANTITIES (EOQs)

ECONOMIC ORDER QUANTITIES (EOQs) SHALL BE PROPOSED BY THE SOLE SOURCE CONTRACTOR TO ENSURE OPTIMAL ORDERING QUANTITIES. THE EQQ INFORMATION REQUESTED IN THIS NARRATIVE, IS BEING SOLICITED TO AVOID ACQUISITIONS IN DISADVANTAGEOUS QUANTITIES AND TO ASSIST THE GOVERNMENT IN DEVELOPING DATA FOR THE CURRENT AND FUTURE ACQUISITIONS FOR THIS ITEM/ THESE ITEMS. THE GOVERNMENT ANTICIPATES THE OFFERS PROPOSAL (IN VIEW OF MARKET RESEARCH, HISTORICAL AWARDS, THE NATURE OF THE ITEM(S) BEING SOLICITED AND THE CURRENT ECONOMIC ENVIRONMENT) WILL INCLUDE QUANTITIES/RANGES THAT WILL VARY FROM THOSE BEING SOLICITED. THE SOLICITED QUANTITIES ARE BASED ON ESTIMATED ANNUAL DEMANDS AND AS SUCH THE GOVERNMENT RESERVES THE RIGHT TO NEGOTIATE / AWARD THE MOST ADVANTAGEOUS QUANTITIES AND/OR RANGES.

*** END OF NARRATIVE A0001 ***

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Name of Offeror or Contractor:

SECTION B - SUPPLIES OR SERVICES AND PRICES/COSTS
B-1. APPROVED SOURCE

THIS REQUIREMENT IS FOR LIMITED SOURCE TO LOCKHEED MARTIN (64059) IAW 10 U.S.C. 3204(a)(1) FAR 6.302-1(a)(2), A LIMITED NUMBER OF RESPONSIBLE SOURCES, AND NO OTHER TYPE OF SUPPLIES OR SERVICES WILL SATISFY THE AGENCY REQUIREMENTS, FULL AND OPEN COMPETITION NEED NOT BE PROVIDED FOR.

LOCKHEED MARTIN CORPORATION DBA LOCKHEED MARTIN MISSILES AND FIRE CONTROL
CAGE: 64059

*** END OF NARRATIVE B0001 ***

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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	THIS IS A <u>FIVE</u>-YEAR REQUIREMENTS TYPE SOLICITATION. FUNDS WILL BE OBLIGATED/CITED UPON THE ISSUANCE OF EACH DELIVERY ORDER. THE ESTIMATED QUANTITIES HEREIN ARE NOT A REPRESENTATION TO AN OFFEROR OR CONTRACTOR THAT THE ESTIMATED QUANTITY WILL BE REQUIRED OR ORDERED, OR THAT CONDITIONS AFFECTING REQUIREMENTS WILL BE STABLE OR NORMAL. THE ESTIMATED QUANTITIES ANNOTATED WITHIN THIS SOLICITATION ARE BASED ON THE MOST CURRENT REQUIREMENT INFORMATION AVAILABLE. THE GOVERNMENT INTENDS TO PROCURE A MINIMUM QUANTITY OF 29 EACH NSN: 6130-01-518-1970, 50 EACH NSN: 6130-01-475-0862, 50 EACH NSN: 5998-01-440-8043, AND 11 EACH NSN: 6150-01-531-5495. THE GOVERNMENT IS NOT OBLIGATED TO ISSUE ANY ORDERS AGAINST THE SUBSEQUENT CONTRACT. BY REPLYING TO THIS SOLICITATION AND SUBMITTING A QUOTATION OR PROPOSAL, THE OFFEROR IS ACKNOWLEDGING ITS ABILITY TO SUPPORT THIS REQUIREMENT FOR THE FULL SOLICITED TIME PERIOD. THE GOVERNMENT HAS SEGREGATED THE ESTIMATED QUANTITIES INTO FIVE, ONE-YEAR ORDERING PERIODS. HOWEVER, THIS DOES NOT PREVENT THE GOVERNMENT FROM EXERCISING ITS RIGHTS UNDER FAR 52.216-21 AT ANY TIME DURING THE REQUIREMENT PERIOD. THE MINIMUM DELIVERY ORDER QUANTITY IS <u>5</u> EACH. AT NO TIME WILL THE CONTRACTOR BE REQUIRED TO SHIP MORE THAN <u>10</u> UNITS PER MONTH UNLESS MUTUALLY AGREED TO BY BOTH PARTIES. DELIVERY ORDERS ISSUED UNDER THIS CONTRACT SHALL NOT HAVE OVERLAPPING DELIVERY SCHEDULES. PRICES QUOTED FOR EACH ORDERING YEAR WILL BE VALID FOR ALL QUANTITIES ORDERED DURING THAT ORDERING PERIOD. THE SOLICITATION IS FOR THE SUPPLIES AS DETAILED ON THE FOLLOWING PAGES. OFFERORS ARE CAUTIONED TO ENSURE THAT OFFERS ARE PROVIDED ON ALL QUANTITIES. FAILURE TO PROPOSE ALL CLINS, MAY RESULT IN A DEFICIENT &/OR INADEQUATE DETERMINATION. AN OFFER MAY BE REJECTED IF THE GOVERNMENT DETERMINES THAT THE OFFER IS MATERIALLY UNBALANCED OR IF THE OFFER CONTAINS UNBALANCED PRICING. YEAR 1 WILL BE FROM DATE OF AWARD THROUGH DAY 365 DAYS AFTER CONTRACT AWARD (DACA). YEAR 2 WILL BEGIN 366 DACA AND END 730 DACA. YEAR 3 WILL BEGIN 731 DACA AND END 1,095 DACA. YEAR 4 WILL BEGIN 1,096 DACA AND END 1,460 DACA. YEAR 5 WILL BEGIN 1,461 DACA AND END 1,825 DACA. ALL REFERENCES TO F.O.B. ORIGIN THROUGHOUT THIS				

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	SOLICITATION APPLY TO ALL QUANTITIES ORDERED AFTER THE FIRST DELIVERY ORDER. THE ESTIMATED (E) QUANTITY LISTED HEREIN DOES NOT COMMIT THE GOVERNMENT TO ORDER THAT OR ANY QUANTITY ABOVE THE MINIMUM QUANTITY. (End of narrative A001)				
2001	POWER SUPPLY NSN: 6130-01-475-0862 Mfr CAGE: 64059 Mfr Part Number: 13508160-2				
2001AA	YEAR ONE PRODUCTION QUANTITY COMMODITY NAME: POWER SUPPLY CLIN CONTRACT TYPE: Firm Fixed Price Range Quantities FROM TO UNIT PRICE 10 40 \$ 41 60 \$ 61 80 \$ 81 100 \$ 101 115 \$ IN THE EVENT AN ORDER IS ISSUED FOR QUANTITIES OUTSIDE THE RANGES LISTED ABOVE, THE UNIT PRICE ASSOCIATED WITH THE HIGHEST LISTED RANGE WILL BE APPLIED TO THAT ORDER. (End of narrative B001) SERIAL NUMBERING, IUID, EXPORT CONTROL, BAR CODE MARKINGS, AND ELECTRONIC FABRICATION ARE APPLICABLE &/OR REQUIRED. (End of narrative C001) Packaging and Marking PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ESTIMATED MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND	50 (E)	EA	See Range Pricing	\$

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	SIZE (INCHES): WT [7.0] LN [10.5] WD [8.5] DP [6.5] ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLIANT MIL-STD-2073-1 CODES, APPENDIX J: JI/A/MP [GX] JII/CD [1] JIII/PM [00] JIV/WM [K3] JV/CD [NB] JVI/CT [D] JVII/UC [ED] JVII/IC [00] JIX/A/PK [F] JX/SM [39] JVIIIA/OPI [M] SUPPLEMENTAL INFORMATION: N/A. (End of narrative D001) <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Origin SHIP TO: (W90BWX) XR W1DF CCDC AV MISSILE CENTER BLDG 5400 FOWLER RD CENTER SUPPORT FACILITIES LOGISTICS REDSTONE ARSENAL,AL,35898-5000 DELIVERIES SHALL COMMENCE 720 DAYS AFTER RECEIPT OF DELIVERY ORDER AT A RATE OF 5 EACH PER MONTH. (End of narrative F001)				
2002	CIRCUIT CARD ASSEMBLY NSN: 5998-01-440-8043 Mfr CAGE: 64059 Mfr Part Number: 13507470				
2002AA	<u>YEAR ONE PRODUCTION QUANTITY</u> PROGRAM YEAR: 1 COMMODITY NAME: CIRCUIT CARD ASSEMBLY	50 (E)	EA	\$ _____	\$ _____

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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	CLIN CONTRACT TYPE: Firm Fixed Price SERIAL NUMBERING, IUID, EXPORT CONTROL, BAR CODE MARKINGS, LICENSING AGREEMENTS, AND ELECTRONIC FABRICATION ARE APPLICABLE &/OR REQUIRED. FAT IS WAIVED PER PAID#I-28755. WAIVER IS VALID THROUGH 042627. (End of narrative C001) <u>Packaging and Marking</u> PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: A ESTIMATED MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES): WT [2.9] LN [13.5] WD [13.5] DP [4] ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLIAN MIL-STD-2073-1 CODES, APPENDIX J: J1/A/MP [GX] J11/CD [1] J111/PM [00] J1V/WM [K3] J1V/CD [LT] J1V/CT [A] J1V11/UC [NS] J1V11/IC [00] J1X/A/PK [F] JX/SM [39] J1V111A/OPI [M] (End of narrative D001) <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Origin SHIP TO: (W90BW) XR W1DF CCDC AV MISSILE CENTER BLDG 5400 FOWLER RD CENTER SUPPORT FACILITIES LOGISTICS REDSTONE ARSENAL, AL, 35898-5000				

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT																		
	DELIVERIES SHALL COMMENCE <u>720 DAYS</u> AFTER RECEIPT OF DELIVERY ORDER AT A RATE OF <u>5 EACH</u> PER MONTH. (End of narrative F001)																						
2003	CABLE ASSEMBLY, SPEC NSN: 6150-01-531-5495 Mfr CAGE: 64059 Mfr Part Number: 13506038-5																						
2003AA	<u>YEAR ONE PRODUCTION QUANTITY</u> COMMODITY NAME: CABLE ASSEMBLY, SPEC CLIN CONTRACT TYPE: Firm Fixed Price <u>Range Quantities</u> <table><tr><td><u>FROM</u></td><td><u>TO</u></td><td><u>UNIT PRICE</u></td></tr><tr><td>10</td><td>40</td><td>\$</td></tr><tr><td>41</td><td>60</td><td>\$</td></tr><tr><td>61</td><td>80</td><td>\$</td></tr><tr><td>81</td><td>100</td><td>\$</td></tr><tr><td>101</td><td>115</td><td>\$</td></tr></table> IN THE EVENT AN ORDER IS ISSUED FOR QUANTITIES OUTSIDE THE RANGES LISTED ABOVE, THE UNIT PRICE ASSOCIATED WITH THE HIGHEST LISTED RANGE WILL BE APPLIED TO THAT ORDER. (End of narrative B001) SERIAL NUMBERING, IUID, EXPORT CONTROL, BAR CODE MARKINGS, AND ELECTRONIC FABRICATION ARE APPLICABLE &/OR REQUIRED. (End of narrative C001) <u>Packaging and Marking</u> PACKAGING/PACKING/SPECIFICATIONS: MMIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ESTIMATED MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES): WT [9.5]	<u>FROM</u>	<u>TO</u>	<u>UNIT PRICE</u>	10	40	\$	41	60	\$	61	80	\$	81	100	\$	101	115	\$	11 (E)	EA	See Range Pricing	\$ _____
<u>FROM</u>	<u>TO</u>	<u>UNIT PRICE</u>																					
10	40	\$																					
41	60	\$																					
61	80	\$																					
81	100	\$																					
101	115	\$																					

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	LN [14] WD [14] DP [14] ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLIANT MIL-STD-2073-1 CODES, APPENDIX J: JI/A/MP [41] JII/CD [1] JIII/PM [00] JIV/WM [00] JV/CD [NA] JVI/CT [A] JVII/UC [ED] JVII/IC [00] JIX/A/PK [F] JX/SM [00] JVIIIA/OPI [M] SUPPLEMENTAL INFORMATION: CONDUIT/CONNECTORS COTS PURCHASE COIL CAP / CUSHION ENDS. (End of narrative D001) <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Origin SHIP TO: (W90BWX) XR W1DF CCDC AV MISSILE CENTER BLDG 5400 FOWLER RD CENTER SUPPORT FACILITIES LOGISTICS REDSTONE ARSENAL,AL,35898-5000 DELIVERIES SHALL COMMENCE 720 DAYS AFTER RECEIPT OF DELIVERY ORDER AT A RATE OF 5 EACH PER MONTH. (End of narrative F001)				
2003TF	<u>CONTRACTOR FIRST ARTICLE TEST (FAT)</u> SERVICE REQUESTED: CONTRACTOR FAT CLIN CONTRACT TYPE: Firm Fixed Price CLIN PROPOSED COST IS FOR FIRST ARTICLE TEST ONLY. FIRST ARTICLE TEST UNIT TO BE TESTED IS A PART OF THE	1	L0		\$

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-24-R-0081 PIIN/SIIN MOD/AMD	Page 12 of 93
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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	TOTAL PRODUCTION QUANTITY. UNIT TO BE TESTED IS 1 EACH. FIRST ARTICLE TEST SHALL BEGIN ON A MUTUALLY AGREED UPON DATE BETWEEN THE GOVERNMENT AND THE CONTRACTOR. THE DATE SHALL OCCUR WITH ENOUGH TIME IN ADVANCE TO BEGIN SCHEDULED DELIVERIES. THE CONTRACTOR SHALL NOTIFY THE CONTRACTING OFFICER IN WRITING 30 DAYS PRIOR TO THE PROPOSED DATE OF FIRST ARTICLE TESTING. THE FIRST ARTICLE TEST UNIT SHALL NOT BE RETAINED BY THE CONTRACTOR AS A MANUFACTURING STANDARD. FAR 52.209-3 ALTERNATE I IS REQUIRED TO PRODUCE THE FIRST ARTICLE AND THE PRODUCTION QUANTITY AT THE SAME FACILITY. FAT CLIN IS NOT RESTRICTED TO A SPECIFIC ORDERING PERIOD AND MAY BE IMPLEMENTED WITH ANY ORDER DURING THE DURATION OF THE CONTRACT AT THE DISCRETION OF THE QUALITY ADMINISTRATOR IN ACCORDANCE WITH FAR SUBPART 9.3. THIS IN NO WAY PRECLUDES THE CONTRACTOR'S RIGHT TO SUBMIT A REQUEST FOR A WAIVER OF THE FAT, ALTHOUGH A WAIVER IS NOT GUARENTEED. (End of narrative B001) <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u>				
2003TR	<u>FIRST ARTICLE TEST REPORT (FATR)</u> COMMODITY NAME: FATR CLIN CONTRACT TYPE: Firm Fixed Price THE FIRST ARTICLE TEST REPORT IS DUE 15 DAYS AFTER FAT. FAT REPORT SHALL BE SUBMITTED IN ENGLISH. THE FIRST ARTICLE TEST REPORT WILL BE SENT ELECTRONICALLY TO: DLAHSVPOSTAWARDTEAM@DLA.MIL. IF THE FILE IS TOO LARGE OR ENCRYPTION IS NEEDED, A DOD SAFE LINK WILL BE SENT TO YOU FOR UPLOAD USING ://SAFE.A.PPS.MIL/. PLEASE USE THE DLAHSVPOSTAWARDTEAM@DLA.MIL EMAIL ADDRESS TO REQUEST THE LINK. THE GOVERNMENT HAS 45 DAYS TO APPROVE/DISAPPROVE THE TEST REPORT. (End of narrative B001) <u>Packaging and Marking</u>	1	EA	\$ ** NSP **	\$ ** NSP **

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	Inspection and Acceptance INSPECTION: OriginACCEPTANCE: Destination Deliveries or Performance DOC SUPPL REL CD MILSTRIP ADDR SIG CD MARK FOR TP CD 0013 DEL REL CD QUANTITY DEL DATE 0011AS REQUIRED FOB POINT: Destination SHIP TO: (W90BW) XR W1DF CCDC AV MISSILE CENTER BLDG 5400 FOWLER RD CENTER SUPPORT FACILITIES LOGISTICS REDSTONE ARSENAL,AL,35898-5000				
2004	POWER SUPPLY NSN: 6130-01-518-1970 Mfr CAGE: 64059 Mfr Part Number: 13508164				
2004AA	YEAR ONE PRODUCTION QUANTITY COMMODITY NAME: POWER SUPPLY CLIN CONTRACT TYPE: Firm Fixed Price Range Quantities FROM TO UNIT PRICE 10 40 \$ 41 60 \$ 61 80 \$ 81 100 \$ 101 115 \$ IN THE EVENT AN ORDER IS ISSUED FOR QUANTITIES OUTSIDE THE RANGES LISTED ABOVE, THE UNIT PRICE ASSOCIATED WITH THE HIGHEST LISTED RANGE WILL BE APPLIED TO THAT ORDER. (End of narrative B001) SERIAL NUMBERING, IUID, BAR CODE MARKINGS, AND ELECTRONIC FABRICATION ARE APPLICABLE &/OR REQUIRED. (End of narrative C001)	40 (E)	EA	See Range Pricing	\$

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	<u>Packaging and Marking</u> PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ESTIMATED MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES): WT [9.0] LN [11.5] WD [9.0] DP [5.0] ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLIANT MIL-STD-2073-1 CODES, APPENDIX J: JI/A/MP [GX] JII/CD [1] JIII/PM [00] JIV/WM [K3] JV/CD [NB] JVI/CT [D] JVII/UC [ED] JVII/IC [00] JIX/A/PK [F] JX/SM [39] JVIIIA/OPI [M] SUPPLEMENTAL INFORMATION: N/A. (End of narrative D001) <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Origin SHIP TO: (W90BW) XR W1DF CCDC AV MISSILE CENTER BLDG 5400 FOWLER RD CENTER SUPPORT FACILITIES LOGISTICS REDSTONE ARSENAL,AL,35898-5000 DELIVERIES SHALL COMMENCE 180 DAYS AFTER RECEIPT OF DELIVERY ORDER AT A RATE OF 5 EACH PER MONTH. (End of narrative F001)				
2004TF	<u>CONTRACTOR FIRST ARTICLE TEST (FAT)</u>	1 (E)	L0		\$

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-24-R-0081 PIIN/SIIN MOD/AMD	Page 15 of 93
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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	SERVICE REQUESTED: CONTRACTOR FAT CLIN CONTRACT TYPE: Firm Fixed Price CLIN PROPOSED COST IS FOR FIRST ARTICLE TEST ONLY. FIRST ARTICLE TEST UNIT TO BE TESTED IS A PART OF THE TOTAL PRODUCTION QUANTITY. UNIT TO BE TESTED IS 1 EACH. FIRST ARTICLE TEST SHALL BEGIN ON A MUTUALLY AGREED UPON DATE BETWEEN THE GOVERNMENT AND THE CONTRACTOR. THE DATE SHALL OCCUR WITH ENOUGH TIME IN ADVANCE TO BEGIN SCHEDULED DELIVERIES. THE CONTRACTOR SHALL NOTIFY THE CONTRACTING OFFICER IN WRITING 30 DAYS PRIOR TO THE PROPOSED DATE OF FIRST ARTICLE TESTING. THE FIRST ARTICLE TEST UNIT SHALL NOT BE RETAINED BY THE CONTRACTOR AS A MANUFACTURING STANDARD. FAR 52.209-3 ALTERNATE I IS REQUIRED TO PRODUCE THE FIRST ARTICLE AND THE PRODUCTION QUANTITY AT THE SAME FACILITY. FAT CLIN IS NOT RESTRICTED TO A SPECIFIC ORDERING PERIOD AND MAY BE IMPLEMENTED WITH ANY ORDER DURING THE DURATION OF THE CONTRACT AT THE DISCRETION OF THE QUALITY ADMINISTRATOR IN ACCORDANCE WITH FAR SUBPART 9.3. THIS IN NO WAY PRECLUDES THE CONTRACTOR'S RIGHT TO SUBMIT A REQUEST FOR A WAIVER OF THE FAT, ALTHOUGH A WAIVER IS NOT GUARENTEED (End of narrative B001) <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u>				
2004TR	<u>FIRST ARTICLE TEST REPORT (FATR)</u> COMMODITY NAME: FATR CLIN CONTRACT TYPE: Firm Fixed Price THE FIRST ARTICLE TEST REPORT IS DUE 15 DAYS AFTER FAT. FAT REPORT SHALL BE SUBMITTED IN ENGLISH. THE FIRST ARTICLE TEST REPORT WILL BE SENT ELECTRONICALLY TO: DLAHSVPOSTAWARDTEAM@DLA.MIL. IF THE FILE IS TOO LARGE OR ENCRYPTION IS NEEDED, A DOD SAFE LINK WILL BE SENT TO YOU FOR UPLOAD USING ://SAFE.A.PPS.MIL/. PLEASE USE THE DLAHSVPOSTAWARDTEAM@DLA.MIL EMAIL ADDRESS TO REQUEST THE LINK. THE GOVERNMENT HAS 45	1	EA	\$ ** NSP **	\$ ** NSP **

[illegible]

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-24-R-0081 PIIN/SIIN MOD/AMD	Page 17 of 93
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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	SERIAL NUMBERING, IUID, EXPORT CONTROL, BAR CODE MARKINGS, AND ELECTRONIC FABRICATION ARE APPLICABLE &/OR REQUIRED. (End of narrative C001) <u>Packaging and Marking</u> PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ESTIMATED MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES): WT [7.0] LN [10.5] WD [8.5] DP [6.5] ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLIANT MIL-STD-2073-1 CODES, APPENDIX J: JI/A/MP [GX] JII/CD [1] JIII/PM [00] JIV/WM [K3] JV/CD [NB] JVI/CT [D] JVII/UC [ED] JVII/IC [00] JIX/A/PK [F] JX/SM [39] JVIIIA/OPI [M] SUPPLEMENTAL INFORMATION: N/A. (End of narrative D001) <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Origin SHIP TO: (W90BW) XR W1DF CCDC AV MISSILE CENTER BLDG 5400 FOWLER RD CENTER SUPPORT FACILITIES LOGISTICS REDSTONE ARSENAL,AL,35898-5000 DELIVERIES SHALL COMMENCE <u>720 DAYS</u> AFTER RECEIPT OF DELIVERY ORDER AT A RATE OF <u>5 EACH</u> PER MONTH				

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT																		
	(End of narrative F001)																						
3003	CABLE ASSEMBLY, SPEC NSN: 6150-01-531-5495 Mfr CAGE: 64059 Mfr Part Number: 13506038-5																						
3003AB	<u>YEAR TWO PRODUCTION QUANTITY</u> COMMODITY NAME: CABLE ASSEMBLY, SPEC CLIN CONTRACT TYPE: Firm Fixed Price <u>Range Quantities</u> <table><tr><th>FROM</th><th>TO</th><th>UNIT PRICE</th></tr><tr><td>10</td><td>40</td><td>\$</td></tr><tr><td>41</td><td>60</td><td>\$</td></tr><tr><td>61</td><td>80</td><td>\$</td></tr><tr><td>81</td><td>100</td><td>\$</td></tr><tr><td>101</td><td>115</td><td>\$</td></tr></table> IN THE EVENT AN ORDER IS ISSUED FOR QUANTITIES OUTSIDE THE RANGES LISTED ABOVE, THE UNIT PRICE ASSOCIATED WITH THE HIGHEST LISTED RANGE WILL BE APPLIED TO THAT ORDER. (End of narrative B001) SERIAL NUMBERING, IUID, EXPORT CONTROL, BAR CODE MARKINGS, AND ELECTRONIC FABRICATION ARE APPLICABLE &/OR REQUIRED. (End of narrative C001) <u>Packaging and Marking</u> PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ESTIMATED MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES): WT [9.5] LN [14.0] WD [14.0] DP [14.0] ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15	FROM	TO	UNIT PRICE	10	40	\$	41	60	\$	61	80	\$	81	100	\$	101	115	\$	5 (E)	EA	See Range Pricing	\$ _____
FROM	TO	UNIT PRICE																					
10	40	\$																					
41	60	\$																					
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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	COMPLIANT MIL-STD-2073-1 CODES, APPENDIX J: JI/A/MP [41] JII/CD [1] JIII/PM [00] JIV/WM [00] JV/CD [NA] JVI/CT [A] JVII/UC [ED] JVII/IC [00] JIX/A/PK [F] JX/SM [00] JVIIIA/OPI [M] SUPPLEMENTAL INFORMATION: CONDUIT/CONNECTORS COTS PURCHASE.COIL CAP/CUSHION ENDS (End of narrative D001) <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Origin SHIP TO: (W90BW) XR W1DF CCDC AV MISSILE CENTER BLDG 5400 FOWLER RD CENTER SUPPORT FACILITIES LOGISTICS REDSTONE ARSENAL,AL,35898-5000 DELIVERIES SHALL COMMENCE <u>720 DAYS</u> AFTER RECEIPT OF DELIVERY ORDER AT A RATE OF <u>5 EACH</u> PER MONTH. (End of narrative F001)				
3004	POWER SUPPLY NSN: 6130-01-518-1970 Mfr CAGE: 64059 Mfr Part Number: 13508164				
3004AB	<u>YEAR TWO PRODUCTION QUANTITY</u> COMMODITY NAME: POWER SUPPLY CLIN CONTRACT TYPE:	11 (E)	EA	See Range Pricing	\$ _____

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-24-R-0081 PIIN/SIIN MOD/AMD	Page 20 of 93
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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT																		
	Firm Fixed Price <u>Range Quantities</u> <table><tr><td><u>FROM</u></td><td><u>TO</u></td><td><u>UNIT PRICE</u></td></tr><tr><td>10</td><td>40</td><td>\$</td></tr><tr><td>41</td><td>60</td><td>\$</td></tr><tr><td>61</td><td>80</td><td>\$</td></tr><tr><td>81</td><td>100</td><td>\$</td></tr><tr><td>101</td><td>115</td><td>\$</td></tr></table> IN THE EVENT AN ORDER IS ISSUED FOR QUANTITIES OUTSIDE THE RANGES LISTED ABOVE, THE UNIT PRICE ASSOCIATED WITH THE HIGHEST LISTED RANGE WILL BE APPLIED TO THAT ORDER. (End of narrative B001) SERIAL NUMBERING, IUID, BAR CODE MARKINGS, AND ELECTRONIC FABRICATION ARE APPLICABLE &/OR REQUIRED. (End of narrative C001) <u>Packaging and Marking</u> PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ESTIMATED MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES): WT [9.0] LN [11.5] WD [9.0] DP [5.0] ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLIANT MIL-STD-2073-1 CODES, APPENDIX J: JI/A/MP [GX] JII/CD [1] JIII/PM [00] JIV/WM [K3] JV/CD [NB] JVI/CT [D] JVII/UC [ED] JVII/IC [00] JIX/A/PK [F] JX/SM [39] JVIIIA/OPI [M] SUPPLEMENTAL INFORMATION: N/A. (End of narrative D001)	<u>FROM</u>	<u>TO</u>	<u>UNIT PRICE</u>	10	40	\$	41	60	\$	61	80	\$	81	100	\$	101	115	\$				
<u>FROM</u>	<u>TO</u>	<u>UNIT PRICE</u>																					
10	40	\$																					
41	60	\$																					
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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT																		
	<u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Origin SHIP TO: (W90BW) XR W1DF CCDC AV MISSILE CENTER BLDG 5400 FOWLER RD CENTER SUPPORT FACILITIES LOGISTICS REDSTONE ARSENAL,AL,35898-5000 DELIVERIES SHALL COMMENCE <u>180 DAYS</u> AFTER RECEIPT OF DELIVERY ORDER AT A RATE OF <u>5 EACH</u> PER MONTH. (End of narrative F001)																						
4001	POWER SUPPLY NSN: 6130-01-475-0862 Mfr CAGE: 64059 Mfr Part Number: 13508160-2																						
4001AC	<u>YEAR THREE PRODUCTION QUANTITY</u> COMMODITY NAME: POWER SUPPLY CLIN CONTRACT TYPE: Firm Fixed Price <u>Range Quantities</u> <table><tr><td><u>FROM</u></td><td><u>TO</u></td><td><u>UNIT PRICE</u></td></tr><tr><td>10</td><td>40</td><td>\$</td></tr><tr><td>41</td><td>60</td><td>\$</td></tr><tr><td>61</td><td>80</td><td>\$</td></tr><tr><td>81</td><td>100</td><td>\$</td></tr><tr><td>101</td><td>115</td><td>\$</td></tr></table> IN THE EVENT AN ORDER IS ISSUED FOR QUANTITIES OUTSIDE THE RANGES LISTED ABOVE, THE UNIT PRICE ASSOCIATED WITH THE HIGHEST LISTED RANGE WILL BE APPLIED TO THAT ORDER. (End of narrative B001) SERIAL NUMBERING, IUID, EXPORT CONTROL, BAR CODE MARKINGS, AND ELECTRONIC FABRICATION ARE APPLICABLE &/OR REQUIRED.	<u>FROM</u>	<u>TO</u>	<u>UNIT PRICE</u>	10	40	\$	41	60	\$	61	80	\$	81	100	\$	101	115	\$	15 (E)	EA	See Range Pricing	\$
<u>FROM</u>	<u>TO</u>	<u>UNIT PRICE</u>																					
10	40	\$																					
41	60	\$																					
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81	100	\$																					
101	115	\$																					

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-24-R-0081 PIIN/SIIN MOD/AMD	Page 22 of 93
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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4003	(End of narrative C001) <u>Packaging and Marking</u> PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ESTIMATED MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES): WT [7.0] LN [10.5] WD [8.5] DP [6.5] ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLIANT MIL-STD-2073-1 CODES, APPENDIX J: JI/A/MP [GX] JII/CD [1] JIII/PM [00] JIV/WM [K3] JV/CD [NB] JVI/CT [D] JVII/UC [ED] JVII/IC [00] JIX/A/PK [F] JX/SM [39] JVIIIA/OPI [M] SUPPLEMENTAL INFORMATION: N/A. (End of narrative D001) <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Origin SHIP TO: (W90BW) XR W1DF CCDC AV MISSILE CENTER BLDG 5400 FOWLER RD CENTER SUPPORT FACILITIES LOGISTICS REDSTONE ARSENAL,AL,35898-5000 DELIVERIES SHALL COMMENCE 720 DAYS AFTER RECEIPT OF DELIVERY ORDER AT A RATE OF 5 EACH PER MONTH. (End of narrative F001) CABLE ASSEMBLY, SPEC				

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT																		
4003AC	NSN: 6150-01-531-5495 Mfr CAGE: 64059 Mfr Part Number: 13506038-5	5 (E)	EA	See Range Pricing	\$ _____																		
	<u>YEAR THREE PRODUCTION QUANTITY</u>																						
	COMMODITY NAME: CABLE ASSEMBLY, SPEC CLIN CONTRACT TYPE: Firm Fixed Price																						
	<u>Range Quantities</u>																						
	<table><tr><td><u>FROM</u></td><td><u>TO</u></td><td><u>UNIT PRICE</u></td></tr><tr><td>10</td><td>40</td><td>\$</td></tr><tr><td>41</td><td>60</td><td>\$</td></tr><tr><td>61</td><td>80</td><td>\$</td></tr><tr><td>81</td><td>100</td><td>\$</td></tr><tr><td>101</td><td>115</td><td>\$</td></tr></table>					<u>FROM</u>	<u>TO</u>	<u>UNIT PRICE</u>	10	40	\$	41	60	\$	61	80	\$	81	100	\$	101	115	\$
	<u>FROM</u>					<u>TO</u>	<u>UNIT PRICE</u>																
	10					40	\$																
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IN THE EVENT AN ORDER IS ISSUED FOR QUANTITIES OUTSIDE THE RANGES LISTED ABOVE, THE UNIT PRICE ASSOCIATED WITH THE HIGHEST LISTED RANGE WILL BE APPLIED TO THAT ORDER.																							
(End of narrative B001)																							
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<u>Packaging and Marking</u> PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B																							
ESTIMATED MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES): WT [9.5] LN [14.0] WD [14.0] DP [14.0] ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLIANT MIL-STD-2073-1 CODES, APPENDIX J: JI/A/MP [41] JII/CD [1] JIII/PM [00]																							

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	JIV/WM [00] JV/CD [NA] JVI/CT [A] JVII/UC [ED] JVII/IC [00] JIX/A/PK [F] JX/SM [00] JVIIIA/OPI [M] SUPPLEMENTAL INFORMATION: CONDUIT/CONNECTORS COTS PURCHASE.COIL CAP/CUSHION ENDS. 				

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-24-R-0081 PIIN/SIIN MOD/AMD	Page 25 of 93
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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	101115\$ IN THE EVENT AN ORDER IS ISSUED FOR QUANTITIES OUTSIDE THE RANGES LISTED ABOVE, THE UNIT PRICE ASSOCIATED WITH THE HIGHEST LISTED RANGE WILL BE APPLIED TO THAT ORDER. (End of narrative B001) SERIAL NUMBERING, IUID, BAR CODE MARKINGS, AND ELECTRONIC FABRICATION ARE APPLICABLE &/OR REQUIRED. (End of narrative C001) Packaging and Marking PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ESTIMATED MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES): WT [9.0] LN [11.5] WD [9.0] DP [5.0] ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLIANT MIL-STD-2073-1 CODES, APPENDIX J: JI/A/MP [GX] JII/CD [1] JIII/PM [00] JIV/WM [K3] JV/CD [NB] JVI/CT [D] JVII/UC [ED] JVII/IC [00] JIX/A/PK [F] JX/SM [39] JVIIIA/OPI [M] SUPPLEMENTAL INFORMATION: N/A. (End of narrative D001) Inspection and Acceptance INSPECTION: OriginACCEPTANCE: Origin Deliveries or Performance				

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT																		
	FOB POINT: Origin SHIP TO: (W90BWX) XR W1DF CCDC AV MISSILE CENTER BLDG 5400 FOWLER RD CENTER SUPPORT FACILITIES LOGISTICS REDSTONE ARSENAL,AL,35898-5000 DELIVERIES SHALL COMMENCE <u>180 DAYS</u> AFTER RECEIPT OF DELIVERY ORDER AT A RATE OF <u>5 EACH</u> PER MONTH. (End of narrative F001)																						
5001	POWER SUPPLY NSN: 6130-01-475-0862 Mfr CAGE: 64059 Mfr Part Number: 13508160-2																						
5001AD	<u>YEAR FOUR PRODUCTION QUANTITY</u> COMMODITY NAME: POWER SUPPLY CLIN CONTRACT TYPE: Firm Fixed Price <u>Range Quantities</u> <table><tr><td><u>FROM</u></td><td><u>TO</u></td><td><u>UNIT PRICE</u></td></tr><tr><td>10</td><td>40</td><td>\$</td></tr><tr><td>41</td><td>60</td><td>\$</td></tr><tr><td>61</td><td>80</td><td>\$</td></tr><tr><td>81</td><td>100</td><td>\$</td></tr><tr><td>101</td><td>115</td><td>\$</td></tr></table> IN THE EVENT AN ORDER IS ISSUED FOR QUANTITIES OUTSIDE THE RANGES LISTED ABOVE, THE UNIT PRICE ASSOCIATED WITH THE HIGHEST LISTED RANGE WILL BE APPLIED TO THAT ORDER. (End of narrative B001) SERIAL NUMBERING, IUID, EXPORT CONTROL, BAR CODE MARKINGS, AND ELECTRONIC FABRICATION ARE APPLICABLE &/OR REQUIRED. (End of narrative C001) <u>Packaging and Marking</u> PACKAGING/PACKING/SPECIFICATIONS:	<u>FROM</u>	<u>TO</u>	<u>UNIT PRICE</u>	10	40	\$	41	60	\$	61	80	\$	81	100	\$	101	115	\$	15 (E)	EA	See Range Pricing	\$_____
<u>FROM</u>	<u>TO</u>	<u>UNIT PRICE</u>																					
10	40	\$																					
41	60	\$																					
61	80	\$																					
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CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-24-R-0081 PIIN/SIIN MOD/AMD	Page 27 of 93
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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ESTIMATED MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES): WT [7.0] LN [10.5] WD [8.5] DP [6.5] ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLIANT MIL-STD-2073-1 CODES, APPENDIX J: JI/A/MP [GX] JII/CD [1] JIII/PM [00] JIV/WM [K3] JV/CD [NB] JVI/CT [D] JVII/UC [ED] JVII/IC [00] JIX/A/PK [F] JX/SM [39] JVIIIA/OPI [M] SUPPLEMENTAL INFORMATION: N/A. (End of narrative D001) <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Origin SHIP TO: (W90BWX) XR W1DF CCDC AV MISSILE CENTER BLDG 5400 FOWLER RD CENTER SUPPORT FACILITIES LOGISTICS REDSTONE ARSENAL,AL,35898-5000 DELIVERIES SHALL COMMENCE 720 DAYS AFTER RECEIPT OF DELIVERY ORDER AT A RATE OF 5 EACH PER MONTH. (End of narrative F001)				
5003	CABLE ASSEMBLY, SPEC NSN: 6150-01-531-5495 Mfr CAGE: 64059 Mfr Part Number: 13506038-5				

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT																		
5003AD	<u>YEAR FOUR PRODUCTION QUANTITY</u> COMMODITY NAME: CABLE ASSEMBLY, SPEC CLIN CONTRACT TYPE: Firm Fixed Price <u>Range Quantities</u> <table><tr><td><u>FROM</u></td><td><u>TO</u></td><td><u>UNIT PRICE</u></td></tr><tr><td>10</td><td>40</td><td>\$</td></tr><tr><td>41</td><td>60</td><td>\$</td></tr><tr><td>61</td><td>80</td><td>\$</td></tr><tr><td>81</td><td>100</td><td>\$</td></tr><tr><td>101</td><td>115</td><td>\$</td></tr></table> IN THE EVENT AN ORDER IS ISSUED FOR QUANTITIES OUTSIDE THE RANGES LISTED ABOVE, THE UNIT PRICE ASSOCIATED WITH THE HIGHEST LISTED RANGE WILL BE APPLIED TO THAT ORDER. (End of narrative B001) SERIAL NUMBERING, IUID, EXPORT CONTROL, BAR CODE MARKINGS, AND ELECTRONIC FABRICATION ARE APPLICABLE &/OR REQUIRED. (End of narrative C001) <u>Packaging and Marking</u> PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ESTIMATED MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES): WT [9.5] LN [14.0] WD [14.0] DP [14.0] ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLIANT MIL-STD-2073-1 CODES, APPENDIX J: J1/A/MP [41] J2/I/CD [1] J3/II/PM [00] J4/IV/WM [00] J5/JV/CD [NA] J6/JVI/CT [A] J7/JVII/UC [ED] J8/JVII/IC [00] J9/JIX/A/PK [F]	<u>FROM</u>	<u>TO</u>	<u>UNIT PRICE</u>	10	40	\$	41	60	\$	61	80	\$	81	100	\$	101	115	\$	5 (E)	EA	See Range Pricing	\$
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10	40	\$																					
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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	JX/SM [00] JVIIIA/OPI [M] SUPPLEMENTAL INFORMATION: CONDUIT/CONNECTORS COTS PURCHASE.COIL CAP/CUSHION ENDS. 				

CONTINUATION SHEET	Reference No. of Document Being Continued SPRRA2-24-R-0081 PIIN/SIIN MOD/AMD	Page 30 of 93
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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	APPLIED TO THAT ORDER. (End of narrative B001) SERIAL NUMBERING, IUID, BAR CODE MARKINGS, AND ELECTRONIC FABRICATION ARE APPLICABLE &/OR REQUIRED. (End of narrative C001) <u>Packaging and Marking</u> PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ESTIMATED MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES): WT [9.0] LN [11.5] WD [9.0] DP [5.0] ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLIANT MIL-STD-2073-1 CODES, APPENDIX J: JI/A/MP [GX] JII/CD [1] JIII/PM [00] JIV/WM [K3] JV/CD [NB] JVI/CT [D] JVII/UC [ED] JVII/IC [00] JIX/A/PK [F] JX/SM [39] JVIIIA/OPI [M] SUPPLEMENTAL INFORMATION: N/A. (End of narrative D001) <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Origin SHIP TO: (W90BWX) XR W1DF CCDC AV MISSILE CENTER				

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT																		
	BLDG 5400 FOWLER RD CENTER SUPPORT FACILITIES LOGISTICS REDSTONE ARSENAL,AL,35898-5000 DELIVERIES SHALL COMMENCE <u>180 DAYS</u> AFTER RECEIPT OF DELIVERY ORDER AT A RATE OF <u>5 EACH</u> PER MONTH. (End of narrative F001)																						
6001	POWER SUPPLY NSN: 6130-01-475-0862 Mfr CAGE: 64059 Mfr Part Number: 13508160-2																						
6001AE	<u>YEAR FIVE PRODUCTION QUANTITY</u> COMMODITY NAME: POWER SUPPLY CLIN CONTRACT TYPE: Firm Fixed Price <u>Range Quantities</u> <table><thead><tr><th><u>FROM</u></th><th><u>TO</u></th><th><u>UNIT PRICE</u></th></tr></thead><tbody><tr><td>10</td><td>40</td><td>\$</td></tr><tr><td>41</td><td>60</td><td>\$</td></tr><tr><td>61</td><td>80</td><td>\$</td></tr><tr><td>81</td><td>100</td><td>\$</td></tr><tr><td>101</td><td>115</td><td>\$</td></tr></tbody></table> IN THE EVENT AN ORDER IS ISSUED FOR QUANTITIES OUTSIDE THE RANGES LISTED ABOVE, THE UNIT PRICE ASSOCIATED WITH THE HIGHEST LISTED RANGE WILL BE APPLIED TO THAT ORDER. (End of narrative B001) SERIAL NUMBERING, IUID, EXPORT CONTROL, BAR CODE MARKINGS, AND ELECTRONIC FABRICATION ARE APPLICABLE &/OR REQUIRED. (End of narrative C001) <u>Packaging and Marking</u> PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B	<u>FROM</u>	<u>TO</u>	<u>UNIT PRICE</u>	10	40	\$	41	60	\$	61	80	\$	81	100	\$	101	115	\$	15 (E)	EA	See Range Pricing	\$
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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	ESTIMATED MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES): WT [7.0] LN [10.5] WD [8.5] DP [6.5] ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLIANT MIL-STD-2073-1 CODES, APPENDIX J: JI/A/MP [GX] JII/CD [1] JIII/PM [00] JIV/WM [K3] JV/CD [NB] JVI/CT [D] JVII/UC [ED] JVII/IC [00] JIX/A/PK [F] JX/SM [39] JVIIIA/OPI [M] SUPPLEMENTAL INFORMATION: N/A. (End of narrative D001) <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Origin SHIP TO: (W90BWX) XR W1DF CCDC AV MISSILE CENTER BLDG 5400 FOWLER RD CENTER SUPPORT FACILITIES LOGISTICS REDSTONE ARSENAL,AL,35898-5000 DELIVERIES SHALL COMMENCE <u>720 DAYS</u> AFTER RECEIPT OF DELIVERY ORDER AT A RATE OF <u>5 EACH</u> PER MONTH. (End of narrative F001)				
6003	CABLE ASSEMBLY, SPEC NSN: 6150-01-531-5495 Mfr CAGE: 64059 Mfr Part Number: 13506038-5				
6003AE	<u>YEAR FIVE PRODUCTION QUANTITY</u>	5 (E)	EA	See Range Pricing	\$ _____

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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT																		
	COMMODITY NAME: CABLE ASSEMBLY, SPEC CLIN CONTRACT TYPE: Firm Fixed Price <u>Range Quantities</u> <table><tr><td><u>FROM</u></td><td><u>TO</u></td><td><u>UNIT PRICE</u></td></tr><tr><td>10</td><td>40</td><td>\$</td></tr><tr><td>41</td><td>60</td><td>\$</td></tr><tr><td>61</td><td>80</td><td>\$</td></tr><tr><td>81</td><td>100</td><td>\$</td></tr><tr><td>101</td><td>115</td><td>\$</td></tr></table> IN THE EVENT AN ORDER IS ISSUED FOR QUANTITIES OUTSIDE THE RANGES LISTED ABOVE, THE UNIT PRICE ASSOCIATED WITH THE HIGHEST LISTED RANGE WILL BE APPLIED TO THAT ORDER. (End of narrative B001) SERIAL NUMBERING, IUID, EXPORT CONTROL, BAR CODE MARKINGS, AND ELECTRONIC FABRICATION ARE APPLICABLE &/OR REQUIRED. (End of narrative C001) <u>Packaging and Marking</u> PACKAGING/PACKING/SPECIFICATIONS: MIL-STD-129 MARKINGS SHALL APPLY UNIT PACK: 001 INTERMEDIATE PACK: 000 LEVEL PRESERVATION: Military LEVEL PACKING: B ESTIMATED MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES): WT [9.5] LN [14.0] WD [14.0] DP [14.0] ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLIANT MIL-STD-2073-1 CODES, APPENDIX J: J1/A/MP [41] J2/I/CD [1] J3/II/PM [00] J4/IV/WM [00] J5/JV/CD [NA] J6/JVI/CT [A] J7/JVII/UC [ED] J8/JVII/IC [00] J9/JIX/A/PK [F] J10/JX/SM [00] J11/JV11IA/OPI [M] SUPPLEMENTAL INFORMATION:	<u>FROM</u>	<u>TO</u>	<u>UNIT PRICE</u>	10	40	\$	41	60	\$	61	80	\$	81	100	\$	101	115	\$				
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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT																		
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6004	POWER SUPPLY NSN: 6130-01-518-1970 Mfr CAGE: 64059 Mfr Part Number: 13508164																						
6004AE	<u>YEAR FIVE PRODUCTION QUANTITY</u> COMMODITY NAME: POWER SUPPLY CLIN CONTRACT TYPE: Firm Fixed Price <u>Range Quantities</u> <table><tr><td><u>FROM</u></td><td><u>TO</u></td><td><u>UNIT PRICE</u></td></tr><tr><td>10</td><td>40</td><td>\$</td></tr><tr><td>41</td><td>60</td><td>\$</td></tr><tr><td>61</td><td>80</td><td>\$</td></tr><tr><td>81</td><td>100</td><td>\$</td></tr><tr><td>101</td><td>115</td><td>\$</td></tr></table> IN THE EVENT AN ORDER IS ISSUED FOR QUANTITIES OUTSIDE THE RANGES LISTED ABOVE, THE UNIT PRICE ASSOCIATED WITH THE HIGHEST LISTED RANGE WILL BE APPLIED TO THAT ORDER. (End of narrative B001)	<u>FROM</u>	<u>TO</u>	<u>UNIT PRICE</u>	10	40	\$	41	60	\$	61	80	\$	81	100	\$	101	115	\$	11 (E)	EA	See Range Pricing	\$ _____
<u>FROM</u>	<u>TO</u>	<u>UNIT PRICE</u>																					
10	40	\$																					
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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
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Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	DELIVERIES SHALL COMMENCE <u>180 DAYS</u> AFTER RECEIPT OF DELIVERY ORDER AT A RATE OF <u>5 EACH</u> PER MONTH. (End of narrative F001)				

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Name of Offeror or Contractor:

SECTION E - INSPECTION AND ACCEPTANCE

This document incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at these addresses:

- For FAR clauses: <https://www.acquisition.gov/>
- For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the clause requires additional or unique information, then that information is provided immediately after the clause title.

	Regulatory Cite	Title	Date
E-1	52.246-2	INSPECTION OF SUPPLIES--FIXED-PRICE	AUG/1996
E-2	52.246-16	RESPONSIBILITY FOR SUPPLIES	APR/1984
E-3	52.246-11	HIGHER-LEVEL CONTRACT QUALITY REQUIREMENT	DEC/2014

(a) The contractor shall comply with the higher-level quality standard(s) listed below.

- 5998-01-440-8043
- HIGHER -- LEVEL CONTRACT QUALITY REQUIREMENT : ANSI/ISO/ASQ 9001:2015, AS 9100 EQUIVALENT, TAILORING: ALL PARAGRAPHS UNDER 8.3 (DESIGN AND DEVELOPMENT OF PRODUCTS AND SERVICES) DO NOT APPLY.
- 6130-01-475-0862, 6150-01-531-5495, 6130-01-518-1970
- HIGHER --- LEVEL CONTRACT QUALITY REQUIREMENT: ANSI/ISO/ASQ 9001: 2015, AS 9100 OR EQUIVALENT, TAILORING: OPERATION REQUIREMENTS ONLY (PARAGRAPH 8.1, 8.2, 8.4, 8.5, 8.6, AND 8.7).

(b) The contractor shall include applicable requirements of the higher-level quality standard(s) listed in paragraph (a) of this clause and the requirement to flow down such standards, as applicable, to lower-tier subcontracts in--

- (1) Any subcontract for critical and complex items (see 46.203(b) and (c)); or
- (2) When the technical requirements of a subcontract require--
 - (i) Control of such things as design, work operations, in-process control, testing and inspection; or
 - (ii) Attention to such factors as organization, planning, work instructions, documentation control, and advanced metrology.

(End of clause)

THIS DOCUMENTS INCORPORATES ONE OR MORE PROVISIONS BY REFERENCE, WITH THE SAME FORCE AND EFFECTS AS IF THEY WERE GIVEN IN FULL TEXT. UPON REQUEST, THE CONTRACTING OFFICER WILL MAKE THEIR FULL TEXT AVAILABLE. ALSO, THE FULL TEXT OF A PROVISION MAY BE ACCESSED ELECTRONICALLY AT THESE ADDRESSES:

- FOR FAR CLAUSES:HTTPS://WWW.ACQUISITION.GOV
- FOR DFARS CLAUSES:HTTPS://WWW.ACQ.OSD.MIL/DPAP/DARS/DFARSPGI/CURRENT.HTML

Regulatory Cite Title Date

*** END OF NARRATIVE E0001 ***

Name of Offeror or Contractor:

SECTION F - DELIVERIES OR PERFORMANCE

This document incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the clause requires additional or unique information, then that information is provided immediately after the clause title.

	Regulatory Cite	Title	Date
F-1	52.211-17	DELIVERY OF EXCESS QUANTITIES	SEP/1989
F-2	52.242-15	STOP-WORK ORDER	AUG/1989
F-3	52.242-17	GOVERNMENT DELAY OF WORK	APR/1984
F-4	52.247-29	F.O.B. ORIGIN	FEB/2006
F-5	52.247-30	F.O.B. ORIGIN, CONTRACTOR'S FACILITY	FEB/2006
F-6	52.247-34	F.O.B. DESTINATION	JAN/1991
F-7	52.247-48	F.O.B. DESTINATION--EVIDENCE OF SHIPMENT	FEB/1999
F-8	52.247-58	LOADING, BLOCKING, AND BRACING OF FREIGHT CAR SHIPMENTS	APR/1984
F-9	52.247-59	F.O.B. ORIGIN--CARLOAD AND TRUCKLOAD SHIPMENTS	APR/1984
F-10	52.247-65	F.O.B. ORIGIN, PREPAID FREIGHT--SMALL PACKAGE SHIPMENTS	JAN/1991
F-11	252.211-7008	USE OF GOVERNMENT-ASSIGNED SERIAL NUMBERS	SEP/2010
F-12	52.211-8	TIME OF DELIVERY	JUN/1997

(a) The Government requires delivery to be made according to the following schedule:

REQUIRED DELIVERY SCHEDULE

ITEM NO.	QUANTITY	WITHIN DAYS AFTER CONTRACT AWARD
6130-01-518-1970	SEE CLIN QTY	180 DAYS WITHOUT FAT; 270 DAYS WITH FAT
6130-01-475-0862	SEE CLIN QTY	720 DAYS WITHOUT FAT
5998-01-440-8043	SEE CLIN QTY	720 DAYS WITHOUT FAT; 270 DAYS WITH FAT
6150-01-531-5495	SEE CLIN QTY	720 DAYS WITHOUT FAT; 270 DAYS WITH FAT

The Government will evaluate equally, as regards time of delivery, offers that propose delivery of each quantity within the applicable delivery period specified above. Offers that propose delivery that will not clearly fall within the applicable required delivery period specified above, will be considered nonresponsive and rejected. The Government reserves the right to award under either the required delivery schedule or the proposed delivery schedule, when an offeror offers an earlier delivery schedule than required above. If the offeror proposes no other delivery schedule, the required delivery schedule above will apply.

OFFERORS PROPOSED DELIVERY SCHEDULE

ITEM NO.	QUANTITY	WITHIN DAYS AFTER DATE OF CONTRACT
_____	_____	_____
_____	_____	_____
_____	_____	_____

(b) Attention is directed to the Contract Award provision of the solicitation that provides that a written award or acceptance of offer

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mailed, or otherwise furnished to the successful offeror, results in a binding contract. The Government will mail or otherwise furnish to the offeror an award or notice of award not later than the day award is dated. Therefore, the offeror should compute the time available for performance beginning with the actual date of award, rather than the date the written notice of award is received from the Contracting Officer through the ordinary mails. However, the Government will evaluate an offer that proposes delivery based on the Contractors date of receipt of the contract or notice of award by adding

(1) five calendar days for delivery of the award through the ordinary mails, or

(2) one working day if the solicitation states that the contract or notice of award will be transmitted electronically. (The term working day excludes weekends and U.S. Federal holidays.) If, as so computed, the offered delivery date is later than the required delivery date, the offer will be considered nonresponsive and rejected.

(End of Clause)

F-13 252.211-7003 ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023) JAN/2023

(a) Definitions. As used in this clause--

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

"Enterprise" means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

"Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Governments unit acquisition cost" means

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractors estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractors estimated fully burdened unit cost to the Government at

Name of Offeror or Contractor:

the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459 .

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

"Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html> .

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) Unique item identifier.

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or Exhibit Line Item Number	Item Description
N/A	N/A
N/A	N/A
N/A	N/A

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(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or Exhibit Line Item Number	Item Description
N/A	N/A
N/A	N/A
N/A	N/A

Item Unique Identification is not required by request of the Service customer. Awardee should check UID exemption box in WAWF.

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparable and DoD serially managed nonreparables as specified in Attachment Number TBD.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number TBD.

(2) Embedded items shall be reported by one of the following methods--

- (i) Use of the embedded items capability in WAWF;
- (ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/> ; or
- (iii) Via WAWF as a deliverable attachment for exhibit line item number TBD, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology--International symbology specification--Data matrix; ECC200 data matrix specification.

(4) Data syntax and semantics of unique item identifiers. The Contractor shall ensure that--

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology--EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology--EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology-Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) Unique item identifier.

(i) The Contractor shall--

- (A) Determine whether to--
 - (1) Serialize within the enterprise identifier;
 - (2) Serialize within the part, lot, or batch number; or

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(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: Original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code--

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

- (1) Unique item identifier.
- (2) Unique item identifier type.
- (3) Issuing agency code (if concatenated unique item identifier is used).
- (4) Enterprise identifier (if concatenated unique item identifier is used).
- (5) Original part number (if there is serialization within the original part number).
- (6) Lot or batch number (if there is serialization within the lot or batch number).
- (7) Current part number (optional and only if not the same as the original part number).
- (8) Current part number effective date (optional and only if current part number is used).
- (9) Serial number (if concatenated unique item identifier is used).
- (10) Governments unit acquisition cost.
- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.
- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

- (1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.
- (2) Unique item identifier of the embedded subassembly, component, or part.
- (3) Unique item identifier type.**

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- (4) Issuing agency code (if concatenated unique item identifier is used).**
- (5) Enterprise identifier (if concatenated unique item identifier is used).**
- (6) Original part number (if there is serialization within the original part number).**
- (7) Lot or batch number (if there is serialization within the lot or batch number).**
- (8) Current part number (optional and only if not the same as the original part number).**
- (9) Current part number effective date (optional and only if current part number is used).**
- (10) Serial number (if concatenated unique item identifier is used).**
- (11) Description.

** Once per item.

- (f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:
 - (1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/> .
 - (2) Embedded items shall be reported by one of the following methods--
 - (i) Use of the embedded items capability in WAWF;
 - (ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/> ; or
 - (iii) Via WAWF as a deliverable attachment for exhibit line item number TBD, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.
- (g) Subcontracts. If the Contractor acquires by subcontract any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

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SECTION G - CONTRACT ADMINISTRATION DATA

	<u>Regulatory Cite</u>	<u>Title</u>	<u>Date</u>
G-1	252.232-7006	WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)	JAN/2023

(a) Definitions. As used in this clause

Department of Defense Activity Address Code (DoDAAC) is a six position code that uniquely identifies a unit, activity, or organization.

Document type means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

Local processing office (LPO) is the office responsible for payment certification when payment certification is done external to the entitlement system.

Payment request and receiving report are defined in the clause at 252.232-7003 , Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003 , Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov> ; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the Web Based Training link on the WAWF home page at <https://wawf.eb.mil/>

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

THE CONTRACTOR IS ENCOURAGED TO USE THE COMBINATION INVOICE AND RECEIVING REPORT (COMBO) FOR SUBMITTING INVOICES FOR SUPPLIES. THIS ELIMINATES THE NEED TO SEPARATELY PROCESS A RECEIVING REPORT AND INVOICE.

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

INVOICE 2IN1 (FOR SERVICES ONLY).

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF combo document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF

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when creating payment requests and receiving reports in the system.
Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	TBD
Issue By DoDAAC	SPRRA1
Admin DoDAAC	TBD
Inspect By DoDAAC	TBD
Ship To Code	TBD
Ship From Code	TBD
Mark For Code	N/A
Service Approver (DoDAAC)	TBD
Service Acceptor (DoDAAC)	TBD
Accept at Other DoDAAC	TBD
LPO DoDAAC	N/A
DCAA Auditor DoDAAC	N/A
Other DoDAAC(s)	N/A

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

TO BE DETERMINED AT TIME OF AWARD

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert See Schedule or Not applicable.)

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activitys WAWF point of contact.

TBD

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

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SECTION H - SPECIAL CONTRACT REQUIREMENTS

WOOD PACKING MATERIALS REQUIREMENTS

A. Wood packaging material (WPM) means wood pallets, skids, load boards, pallet collars, wooden boxes, reels, dunnage, crates, frame and cleats. The definition excludes materials that have undergone a manufacturing process, such as corrugated fiberboard, plywood, particleboard, veneer, and oriented strand board (OSD).

B. All Wood Packaging Material (WPM)) acquired by DOD must meet requirements of International Standards for Phytosanitary Measures (ISPM) 15, "Guidelines for Regulating Wood Packaging Materials International Trade." DOD shipments inside and outside of the United States must meet ISPM 15 whenever WPM is used to ship DOD cargo.

(1) All WPM shall comply with the official quality control program for heat treatment (HT) or kiln dried heat treatment (KD HT) in accordance with American Lumber Standard Committee, incorporated (ALSC) Wood Packaging Material Program and WPM Enforcement Regulations (see <http://www.alsc.org/>).

(2) All WPM shall include certification/quality markings in accordance with the ALSC standard. Marking shall be placed in an unobstructed area that will be readily visible to inspectors. Pallet markings shall be applied to the stringer or block on diagonally opposite sides of the pallet and be contrasting and clearly visible. All containers shall be marked on a side other than the top or bottom, contrasting and clearly visible. All dunnage used in configuring and/or securing the load shall also comply with ISPM 15 and be marked with an ALSC approved DUNNAGE stamp.

C. Failure to comply with the requirements of this restriction may result in refusal, destruction, or treatment at entry. The Agency reserves the right to recoup from the Contractor any remediation costs incurred by the Government.

D. Replacement Preservative for Pentachlorophenol

If packaging requirements of this contract specify the use of wood products and a preservative is required, Pentachlorophenol, commonly referred to as "Penta" or "PCP" is prohibited. Replacement preservatives are 2 percent copper naphthenate, 3 percent zinc naphthenate or 1.8 percent copper 8 quinalinolate.

(1) Heat Treatment: Boxes/pallets and any wood used as inner packaging made of non-manufactured wood shall be heat-treated. All non-manufactured wood used in packaging shall be heat treated to a core temperature of 56 degrees Celsius for a minimum of 30 minutes. The box/pallet manufacturer and the manufacturer of wood used as inner packaging shall be affiliated with an inspection agency accredited by the board of review of the American Lumber Standard Committee. The box/pallet manufacturer and the manufacturer of wood used as inner packaging shall ensure traceability to the original source of heat treatment.

(2) Marking: Each box/pallet shall be marked to show the conformance to the International Plant Protection Convention Standard. The quality mark shall be placed on both ends of the outer packaging, between the end cleats or end battens: on two sides of the pallet. Foreign manufacturers shall have the heat treatment of non-manufactured wood process verified in accordance with their National Plant Protection Organization's compliance program. In addition, wood used as dunnage for blocking and bracing shall be ordered with ALSC certified marking for dunnage or the markings may be applied locally at two foot intervals.

REVISIONS TO DRAWINGS/PART NUMBERS REQUIREMENT

(a) Sources in receipt of this solicitation are requested, at no cost to the Government, to immediately notify the Contracting Officer if they are aware of any change(s)/revision(s) to the drawing(s) or part number(s) in this solicitation which have been approved by the Government for implementation. Notification of part number changes shall be supported by data which indicates the type of change, approving authority as required by ANSI EIA 649 MIL-STD-973 and date and method of submittal of provisioning documentation and drawings.

If complete data package has not been previously provided, the contractor shall, at no direct cost to the Government, immediately submit applicable drawings, along with a copy of the approval change authority, to the Contracting Officer, at the office symbol and mailing address listed in the "ISSUED BY" block on page one (1) of this document. The minimum acceptable data includes the next higher assembly and the item of Supply Detail Drawings which will allow provisioning, National Stock Number assignment and updating of AMCOM's data records.

(b) The contractor hereby verifies previous contractual submission of technical data:

Contract No.:_____

Contractor:_____

Explanation of Data Rights:_____

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(c) The Government is not by this request soliciting, nor is the Government liable for cost incurred by the offeror in preparing or developing modifications, deviations, waivers, or other changes to drawings or part number(s). Furthermore, this request does not authorize changes to the drawing(s) or part number(s) for this acquisition, another contract, or for any other purpose. Offerors performing any contract awarded as a result of this solicitation must comply with the drawing(s) and specifications as set forth herein, unless this solicitation is amended, or any resulting contract is modified by the Contracting Officer.

(d) All proposed part number changes shall be submitted pursuant to the requirements of the requirement entitled, "ENGINEERING CHG PROPOSAL, VALUE ENG CHG PROPOSAL, REQUEST FOR VARIANCE, ENG RELEASE RECORDS, NOTICE OF REVISION, AND SPECIFICATION CHG NOTICE PREPARATION AND SUBMISSION INSTRUCTIONS.

ENGINEERING CHG PROPOSAL, VALUE ENG CHG PROPOSAL, REQUEST FOR VARIANCE, ENG RELEASE RECORDS, NOTICE OF REVISION, AND SPECIFICATION CHG NOTICE PREPARATION AND SUBMISSION INSTRUCTIONS1. Contractor initiated Engineering Change Proposals (ECPs), Value Engineering Change Proposals (VECPs), and Request for Variance (RFVs), collectively referred to as "proposals", shall be prepared, submitted and distributed in accordance with paragraphs 2, 3 and 4 below except as specified in paragraph 5 below.

2. Format.

a. Class I ECPs require the "Long Form Procedure" for documenting the change and describing the effects of the change on the suitability and supportability of the Configuration Item (CI). Class I ECPs should be limited to those that are necessary or offer significant benefit to the Government. Class I ECPs are those that affect the performance, reliability, maintainability, survivability, weight, balance, moment of inertia, interface characteristics, electromagnetic characteristics, or other technical requirements in the specifications and drawings. Class I ECPs also include those changes that affect Government Furnished Equipment, safety, compatibility, retrofit, operation and maintenance manuals, interchangeability, substitutability, replaceability, source control specifications and drawings, costs, guarantees or warranties, deliveries, or schedules. Class II ECPs are those that do not affect form, fit and function, cost, or schedule of the system CI and do not meet the other criteria described above for Class I ECPs.

b. Long Form Procedure: Class I changes to the CI require that DD Form 1692, pages 1 through 7 (as applicable), be prepared. Use of this procedure assures that all effects of the change on the CI are properly addressed and documented to the necessary detail to allow proper evaluation of the proposed change.

c. Short Form Procedure: ECPs and VECPs , which meet the requirements of Class II ECPs, shall be prepared using DD Form 1692 (page 1 only). Supplemental pages may be used with the form as necessary. The responsible Defense Contract Management Agency (DCMA) Contract Management Office (CMO) will validate data entries in Block 5 "Class of ECP", Block 6 "Priority", and Block 8 "Justification Codes."

d. The Contractor shall not manufacture items for acceptance by the Government that incorporate a known departure from requirements, unless the Government has approved an RFV. RFVs shall be prepared using DD Form 1694.

e. Each ECP and RFV shall be accompanied by a written and signed evaluation prepared by the responsible Defense Contract Management Agency (DCMA) technical representative. The DCMA written evaluation shall be considered part of the ECP/RFV proposal.

f. Classification of RFVs.

(1) Major RFVs. RFVs written against CIs shall be designated as major when the RFV consists of acceptance of an item having a nonconformance with contract or configuration documentation involving health; performance; interchangeability; reliability; survivability; maintainability; effective use or operation; weight; appearance (when a factor); or when there is a departure from a requirement classified as major in the contractual documentation.

(2) Critical RFVs. RFVs written against CIs shall be designated as critical when the RFV consists of acceptance of an item having a nonconformance with contract or configuration documentation involving safety or when there is a departure from a requirement classified as critical in the contractual documentation.

(3) Minor RFVs. RFVs written against CIs shall be designated as minor when the RFV consists of acceptance of an item having a nonconformance with contract or configuration documentation which does not involve any of the factors listed above in paragraphs f(1) or g(2), or when there is a departure from a requirement classified as minor in the contractual documentation.

g. Proposals shall include sufficient technical data to describe all changes from existing contract requirements.

h. Proposals shall include sufficient justification for making the change, including a statement of contract impact, if the change is not authorized.

i. Proposals for ECPs shall set forth a "not to exceed" price and delivery adjustment acceptable to the Contractor if the Government subsequently approves the proposal. If approved, the equitable increase shall not exceed this amount.

j. Times allowed for technical decisions for ECP and RFV proposals will be worked out via mutual agreement between the Contractor and

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- the Government.
- k. Proposals for VECPS shall set forth a "not less than" price and delivery adjustment acceptable to the Contractor if the Government subsequently approves the proposal. If approved, the savings shall not be less than this amount.
- l. The Contractor shall utilize DD Form 2617, "Engineering Release Record" (ERR) to release new or revised configuration documentation to the Government for approval.
- m. The Contractor shall utilize DD Form 1695, "Notice of Revision" (NOR) to describe the exact change(s) to configuration documentation specified as a data requirement in the contract. The Contractor shall describe the change using sub-sections entitled "WAS" to describe the current contractual technical requirement and "IS" to describe the proposed new requirement.
3. Submittal. The preferred method of submittal is digitally as a single file in Adobe Acrobat Portable Document Format (PDF). Unless otherwise specified, alternate methods of submittal shall be proposed to and authorized by the PCO prior to submittal. If the hardcopy method is requested and approved, the Contractor shall submit two (2) copies of each proposal to the responsible Administrative Contracting Officer (ACO). One (1) copy of each proposal shall be returned to the Contractor within (5) working days after receipt by the ACO, stating whether or not the proposal is in compliance with this provision. Any unresolved differences between the ACO and the Contractor concerning ECPS, VECPS, or RFVs will be submitted to the PCO for resolution.
4. Distribution.
- a. Electronic Distribution. The preferred method of distribution for unclassified is through the email or DOD safe site (<https://safe.apps.mil>) addressed to the PCO. Classified material shall be distributed via SIPERNET or by classified email as determined by the PCO. Microsoft Word is required for use with the transmittal letter (E-mail). Required forms will be attached to the E-mail. All forms may be obtained from the Office of the Secretary of Defense Executive Services Directorate DoD Directives Division website (<http://www.esd.whs.mil/DD/>) via the DoD Forms menu. The forms are provided in fillable Adobe Acrobat Portable Document Format (PDF). In order to access and use the forms, the user must have the "Adobe Acrobat" software installed on their computer. Drawings may be scanned and sent as an attachment. In some cases, because of size, drawings may have to be sent as hard copies or sent under special electronic instructions provided by the PCO.
5. Alternate Format, Submittal or Distribution Process. Proposals may be prepared in a different format, submitted using a different submittal process or distributed in a different manner than specified in paragraphs 2, 3 and 4 above, so long as the alternate approach is in accordance with a Government approved configuration management plan governed by this contract or the PCO authorizes the alternate format, submittal, or distribution process.
6. Government Acceptance. Acceptance of a proposal by the Government shall be affected by the issuance of a change order or execution of a supplemental agreement incorporating the proposal into the contract unless the PCO authorizes another method of acceptance. The Government will notify the Contractor in writing if a proposal is determined to be unacceptable.

POINT OF PRESERVATION, PACKAGING, PACKING AND MARKING OF SUPPLIES

Preservation, packaging, packing and marking of supplies will be performed at the following location: (If other than the location set forth in block 9, page 1 of this purchase order):

TBD

BAR CODE MARKING REQUIREMENTS

Bar Code Markings are required in accordance with the latest revision of MIL-STD-129 and ISO/IEC 16388 - Information Technology - Automatic Identification and Data Capture Techniques - Bar Code Symbology Specification - Code 39.

FIRST ARTICLE TEST - CONTRACTOR TESTED - ADDITIONAL REQUIREMENTS

a. The first article shall be inspected and tested by the contractor in accordance with the requirements of the contract. The first article shall be representative of items to be manufactured using the same processes and procedures and at the same facility as contract production. All parts and materials, including packaging and packing, shall be obtained from the same source of supply as will be used during regular production. All components, subassemblies, and assemblies in the first article sample shall have been produced by the Contractor (including subcontractors) using the technical data package applicable to this procurement. If applicable, the Contractor or its subcontractor shall produce or demonstrate proof that any fixtures, tool masters, jigs, or similar devices used in the inspection and/or testing of the first article have been subjected to an initial inspection, or other suitable means supporting their accuracy, before being used in the manufacturing/production process.

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- b. At a minimum, first article inspection and test shall include:
- (1) A 100% inspection (or as set forth in relevant specifications) of all physical and functional characteristics, to include but not limited to, any drawings, as well as any other requirements which may be set forth by other applicable specifications, or in any technical data packages, and/or any other special/functional testing as set forth in this contract;
 - (2) A review of parts, components and/or assemblies for compliance to identification markings;
 - (3) A review of packaging for compliance to preservation, packaging, packing, and marking requirements;
 - (4) A review for compliance within the Technical Data Package or as otherwise stated in this contract that approved manufacturing sources have been used for special processes, controlled parts, components, and/or assemblies;
 - (5) The verification through documented evidence that all inspection, testing, measuring and diagnostic equipment used in the inspection/test of the first article piece(s) have been subjected to an initial inspection, or other means supporting their accuracy, and are maintained in accordance with contractual calibration standards.
- c. Unless otherwise specified in the contract, the contractor shall NOT retain the first article provided under this contract to serve as the manufacturing standard of acceptance.
- d. A First Article Test Report (FATR) shall be prepared and submitted in accordance with FAR 52.209-3. The report will include all necessary documentation to demonstrate and support full compliance with the first article inspection and test requirements as set forth in this contract (including supplier's and vendor's inspection records and certifications, when applicable). The FATR shall include actual inspection and test results to include all measurements, recorded test data, and certifications (if applicable) keyed to each drawing, specifications and/or Quality Assurance Provision (QAP) requirement and identified by each individual QAP characteristic, drawing/specification characteristic and unlisted characteristic. The FATR shall contain sufficient narrative content, technical data, illustrations or photographic evidence, and an objective determination by the contractor to allow the designated Government representative to determine that the First Article test was successfully completed.
- e. Additional first article testing may be ordered by the Contracting Officer in writing when (i) a major change is made to the technical data, (ii) whenever there is a lapse in production for a period in excess of 3 years, or (iii) whenever a change occurs in place of performance, manufacturing locations or processes, material used, drawing, specification or source of supply. When conditions (i), (ii), or (iii) above occurs, the Contractor shall notify the Contracting Officer so that a determination can be made concerning the need for the additional first article sample or portion thereof, and instructions provided concerning the submission, inspection, and notification of results. Should the Government require additional first article testing the Contractor may be entitled to an equitable adjustment.

REQUEST FOR WAIVER OF REQUIRED FIRST ARTICLE APPROVAL

- (a) The requirement for FIRST ARTICLE APPROVAL may be waived, in whole or in part, by the Government, provided that sufficient information is provided to determine whether the request is to be approved. A partial waiver is defined as a waiver of only a specific test(s) of the First Article Test requirement as required by the Technical Data Package (TDP) and/or the solicitation/contract, i.e. vibration test, saltwater spray test, or a test on a component or subassembly of the procured item. A full waiver is defined as a waiver of all First Article testing as required by the TDP and/or the solicitation/contract.
 - (b) All waiver requests require a First Article Waiver Worksheet to be completed and submitted to the Government along with all supporting documentation. The worksheet will be provided by the Buyer upon request. No requests will be considered if the worksheet and supporting documentation are not submitted to the Government. The worksheet must be completed in its entirety. For those sections of the worksheet which do not apply, annotate with N/A (not applicable). To substantiate or clarify information provided, the Government may request additional information.
 - (c) Submission of the FAT waiver request (and supporting documentation) to the Government does not guarantee that the waiver will be granted.
 - (d) The First Article Waiver Worksheet and additional supporting documentation must be submitted on Company letterhead and signed by an authorized agent of the Company.
 - (e) Supporting documentation.
- (1) The request for waiver must be accompanied by the First Article Waiver Worksheet, and documentation in support of the request. The documentation may include, but is not limited to:
- (i) Copy of the Administrative Contracting Officers (ACOs) or Procuring Contracting Officers (PCOs) letter approving a First

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- Article Test report on a recent contract for the same or similar item;
- (ii) Copy of a First Article Test report for the same or a similar item as that solicited herein;
 - (iii) Copy of an ACO or PCO letter approving a prior waiver request; or
 - (iv) If the waiver request is based on similarity, a copy of the drawing/other appropriate technical requirements of the similar item.
- (2) If a copy of a First Article Test report is submitted in support of a request for waiver, the test report must have been approved and signed by an authorized representative of the United States Government.
- (3) The First Article Waiver Worksheet and all supporting documentation should be submitted by email. If the First Article Waiver Worksheet and supporting documentation cannot be transmitted by email, the PCO should be contacted for further instruction.
- (f) Note: If a waiver is granted, an accelerated delivery schedule will apply.
- (g) Note: Cost considerations shall apply for approving a waiver or a portion thereof of a First Article Test.

ELECTRONIC FABRICATION: REQUIREMENTS FOR ELECTRICAL AND ELECTRONIC ASSEMBLIES

1. Notwithstanding any other provision contained in any part of this contract to the contrary, the minimum requirements/standards for soldering electrical and electronic assemblies shall be the non-military joint industry standard, ANSI/J-STD-001, Class 3. The revision of ANSI/J-STD-001 in effect on the effective date of the contract shall govern the hardware produced hereunder. A copy of ANSI/J-STD-001 may be obtained from the Institute for Interconnecting and Packaging Electronic Circuits (IPC), 3000 Lakeside Drive, 105N, Bannockburn, IL, 60015, <https://www.ipc.org> .
2. The contractor shall establish and maintain an electronic/electrical parts control program and shall maintain and make available to the Government records and data which will provide visibility and traceability of all parts used in the production of the equipment under this contract. This selection of parts shall not be construed to relieve the contractor of meeting specified performance of the end item in which the part is used.
3. The Technical Data Package (TDP) shall serve as the baseline Program Parts Selection List (PPSL) and the parts and sources listed therein are the standard parts and sources. A Non Standard Part is defined as a part or source other than that cited in the PPSL. When the contractor desires to use a part or source other than those cited in the PPSL, the change must be approved by the Government via a Request for Deviation (RFD) as defined elsewhere in this contract. Failure on the part of the contractor to submit such RFDs may result in the replacement of the nonstandard part with the standard part by the Government at the contractors expense for all affected items.
4. The contractor shall provide objective evidence such as form, fit, function, and interchangeability data that shows the proposed part complies with the requirements of applicable parts documentation. The RFD shall detail the technical justification for the use of the part and advantages of the nonstandard part, if any. Compare the nonstandard part to the standard part whose characteristics are nearest to those required for the application.
- Include, when applicable:
- a. Part Number and Source
 - b. Size and weight data.
 - c. Electrical and mechanical characteristics
 - d. Reliability (with data if requested)
 - e. Availability of the standard part (delivery schedules, still available etc.)
 - f. Supplemental data such as existing control drawings, specifications, vendor data sheets, and other pertinent data. Data need not be furnished for nonstandard parts covered by documents listed in the Department of Defense Index of Specifications and Standards (DoDISS) or Standardized Military Drawings (SMD).
5. The Contractor shall maintain a Lead Free Control Plan (LFCP) and make available to the Government upon request. The requirement for a Lead Free Control Plan shall be flowed down to suppliers of equipment that may include lead-free materials. The LFCP shall follow the guidelines set forth in GEIA-STD-0005-1, "Performance Standard for Aerospace and High Performance Electronic Systems Containing Lead-Free Solder" or its equivalent. In addition, the LFCP shall also include tin whisker mitigation plans in accordance with GEIA-STD-0005-2, "Standard for Mitigating the Effects of Tin Whiskers in Aerospace and High Performance Electronic Systems" or its equivalent, at control level 2C or equivalent. The Contractor should include in the LFCP any special design considerations, manufacturing process controls, test and qualification requirements, quality inspection and screening, marking and identification, maintenance and repair processes, and other steps taken to mitigate risk.
6. The Contractor shall prepare, or update existing, Counterfeit Risk Management Plan and make available to the Government upon request. The Plan shall meet the requirements of SAE AS5553 for electronic items. The Contractor shall procure parts from original manufacturers

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or the original manufacturers franchised distributors. Contractors shall report counterfeits and suspected counterfeits to the Government and in the Government Industry Data Exchange Program (GIDEP), in accordance with the GIDEP Operations Manual, S0300-BT-PRO-010.

FIRST ARTICLE TEST - GOVERNMENT TESTED - ADDITIONAL REQUIREMENTS

a. The first article shall conform to the requirements of the contract and the Technical Data Package drawing(s), the Quality Assurance Provisions (QAPs), and specification(s) referenced thereon. The first article shall be representative of items to be manufactured using the same processes and procedures and at the same facility as contract production. All components, subassemblies, and assemblies in the first article sample shall have been produced by the Contractor (including subcontractors) using the technical data package applicable to this procurement.

b. Unless otherwise specified in the contract, the contractor shall NOT retain the first article provided under this contract to serve as the manufacturing standard of acceptance.

c. Additional first article testing may be ordered by the Contracting Officer in writing whenever (i) a major change is made to the technical data, (ii) there is a lapse in production for a period in excess of 18 months, or (iii) a change occurs in place of performance, manufacturing locations or processes, material used, drawing, specification or source of supply. When conditions (i), (ii), or (iii) above occurs, the Contractor shall notify the Contracting Officer so that a determination can be made concerning the need for the additional first article sample or portion thereof, and instructions provided concerning the submission, inspection, and notification of results. Should the Government require additional first article testing the Contractor may be entitled to an equitable adjustment.

d. Rejected first articles or portions thereof not destroyed during inspection and testing will be held at the government first article test site for a period of 3 years following the date of notification of rejection, pending receipt of instructions from the Contractor for the disposition of the rejected material. The Contractor agrees that failure to furnish such instructions within said time period shall constitute abandonment of said material by the Contractor and shall confer upon the Government the right to destroy or otherwise dispose of the rejected items at the discretion of the Government without liability to the Contractor by reason of such destruction or disposition.

DLAD 33.103 L06: AGENCY PROTESTS (DEC 2016)

Interested parties may file an agency level protest with the contracting officer or may request an independent review by the chief of the contracting office (CCO). Independent review by the CCO is an alternative to consideration by the contracting officer and is not available as an appellate review of a contracting officer decision on a protest previously filed with the contracting officer. Absent a clear indication of the intent to file an agency level protest with the CCO for independent review, protests will be presumed to be protests to the contracting officer.

*** END OF NARRATIVE H0001 ***

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SECTION I - CONTRACT CLAUSES

This document incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the clause requires additional or unique information, then that information is provided immediately after the clause title.

	<u>Regulatory Cite</u>	<u>Title</u>	<u>Date</u>
I-1	52.202-1	DEFINITIONS	JUN/2020
I-2	52.203-3	GRATUITIES	APR/1984
I-3	52.203-5	COVENANT AGAINST CONTINGENT FEES	MAY/2014
I-4	52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT	JUN/2020
I-5	52.203-7	ANTI-KICKBACK PROCEDURES	JUN/2020
I-6	52.203-8	CANCELLATION, RESCISSION, AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY	MAY/2014
I-7	52.203-10	PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY	MAY/2014
I-8	52.203-12	LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	JUN/2020
I-9	52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS	JAN/2017
I-10	52.204-10	REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS	JUN/2020
I-11	52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE	OCT/2018
I-12	52.204-18	COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE	AUG/2020
I-13	52.204-23	PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB AND OTHER COVERED ENTITIES (DEC 2023)	DEC/2023
I-14	52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, OR PROPOSED FOR DEBARMENT	NOV/2021
I-15	52.209-9	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS	OCT/2018
I-16	52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS	NOV/2015
I-17	52.210-1	MARKET RESEARCH	NOV/2021
I-18	52.211-5	MATERIAL REQUIREMENTS	AUG/2000
I-19	52.211-15	DEFENSE PRIORITY AND ALLOCATION REQUIREMENTS	APR/2008
I-20	52.215-2	AUDIT AND RECORDS--NEGOTIATIONS	JUN/2020
I-21	52.215-8	ORDER OF PRECEDENCE--UNIFORM CONTRACT FORMAT	OCT/1997
I-22	52.215-10	PRICE REDUCTION FOR DEFECTIVE CERTIFIED COST OR PRICING DATA	AUG/2011
I-23	52.215-14	INTEGRITY OF UNIT PRICES (NOV 2021) -- ALTERNATE I (OCT 1997)	OCT/1997
I-24	52.215-15	PENSION ADJUSTMENTS AND ASSET REVERSIONS	OCT/2010
I-25	52.215-18	REVERSION OR ADJUSTMENT OF PLANS FOR POSTRETIREMENT BENEFITS (PRB) OTHER THAN PENSIONS	JUL/2005
I-26	52.215-21	REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA --MODIFICATIONS	NOV/2021
I-27	52.215-23	LIMITATIONS ON PASS-THROUGH CHARGES	JUN/2020
I-28	52.217-2	CANCELLATION UNDER MULTI-YEAR CONTRACTS	OCT/1997
I-29	52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS (FEB 2024)	FEB/2024
I-30	52.219-16	LIQUIDATED DAMAGES--SUBCONTRACTING PLAN	SEP/2021
I-31	52.222-1	NOTICE TO THE GOVERNMENT OF LABOR DISPUTES	FEB/1997
I-32	52.222-3	CONVICT LABOR	JUN/2003
I-33	52.222-20	CONTRACTS FOR MATERIALS, SUPPLIES, ARTICLES, AND EQUIPMENT	JUN/2020
I-34	52.222-21	PROHIBITION OF SEGREGATED FACILITIES	APR/2015
I-35	52.222-26	EQUAL OPPORTUNITY	SEP/2016
I-36	52.222-37	EMPLOYMENT REPORTS ON VETERANS	JUN/2020
I-37	52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT	DEC/2010
I-38	52.222-50	COMBATING TRAFFICKING IN PERSONS	NOV/2021
I-39	52.222-54	EMPLOYMENT ELIGIBILITY VERIFICATION	MAY/2022
I-40	52.225-13	RESTRICTIONS ON CERTAIN FOREIGN PURCHASES	FEB/2021
I-41	52.226-7	DRUG-FREE WORKPLACE (MAY 2024)	MAY/2024

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I-42	52.226-8	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024)	MAY/2024
I-43	52.227-1	AUTHORIZATION AND CONSENT	JUN/2020
I-44	52.227-2	NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT	JUN/2020
I-45	52.229-3	FEDERAL, STATE, AND LOCAL TAXES	FEB/2013
I-46	52.230-6	ADMINISTRATION OF COST ACCOUNTING STANDARDS	JUN/2010
I-47	52.232-1	PAYMENTS	APR/1984
I-48	52.232-8	DISCOUNTS FOR PROMPT PAYMENT	FEB/2002
I-49	52.232-9	LIMITATION ON WITHHOLDING OF PAYMENTS	APR/1984
I-50	52.232-11	EXTRAS	APR/1984
I-51	52.232-17	INTEREST	MAY/2014
I-52	52.232-23	ASSIGNMENT OF CLAIMS	MAY/2014
I-53	52.232-25	PROMPT PAYMENT	JAN/2017
I-54	52.232-33	PAYMENT BY ELECTRONIC FUNDS TRANSFER--SYSTEM FOR AWARD MANAGEMENT	OCT/2018
I-55	52.232-39	UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS	JUN/2013
I-56	52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS(MAR 2023)	MAR/2023
I-57	52.233-1	DISPUTES	MAY/2014
I-58	52.233-3	PROTEST AFTER AWARD	AUG/1996
I-59	52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM	OCT/2004
I-60	52.242-4	CERTIFICATION OF FINAL INDIRECT COSTS	JAN/1997
I-61	52.242-5	PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS	JAN/2017
I-62	52.242-13	BANKRUPTCY	JUL/1995
I-63	52.243-1	CHANGES--FIXED PRICE	AUG/1987
I-64	52.244-5	COMPETITION IN SUBCONTRACTING (AUG 2024)	AUG/2024
I-65	52.244-6	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (FEB 2024)	FEB/2024
I-66	52.245-9	USE AND CHARGES	APR/2012
I-67	52.246-23	LIMITATION OF LIABILITY	FEB/1997
I-68	52.246-26	REPORTING NONCONFORMING ITEMS (AUG 2024)	AUG/2024
I-69	52.248-1	VALUE ENGINEERING	JUN/2020
I-70	52.249-2	TERMINATION FOR CONVENIENCE OF THE GOVERNMENT (FIXED-PRICE)	APR/2012
I-71	52.249-8	DEFAULT (FIXED-PRICE SUPPLY AND SERVICE)	APR/1984
I-72	52.253-1	COMPUTER GENERATED FORMS	JAN/1991
I-73	252.203-7000	REQUIREMENTS RELATING TO COMPENSATION OF FORMER DOD OFFICIALS	SEP/2011
I-74	252.203-7001	PROHIBITION ON PERSONS CONVICTED OF FRAUD OR OTHER DEFENSE-CONTRACT-RELATED FELONIES (JAN 2023)	JAN/2023
I-75	252.203-7002	REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS (DEC 2022)	DEC/2022
I-76	252.203-7003	AGENCY OFFICE OF THE INSPECTOR GENERAL	AUG/2019
I-77	252.203-7004	DISPLAY OF HOTLINE POSTERS (JAN 2023)	JAN/2023
I-78	252.204-7000	DISCLOSURE OF INFORMATION	OCT/2016
I-79	252.204-7003	CONTROL OF GOVERNMENT PERSONNEL WORK PRODUCT	APR/1992
I-80	252.204-7006	BILLING INSTRUCTIONS--COST VOUCHERS (MAY 2023)	MAY/2023
I-81	252.204-7012	SAFEGUARDING COVERED DEFENSE INFORMATION AND CYBER INCIDENT REPORTING (MAY 2024) (DEVIATION 2024-00013, REVISION 1)	MAY/2024
I-82	252.204-7015	NOTICE OF AUTHORIZED DISCLOSURE OF INFORMATION FOR LITIGATION SUPPORT (JAN 2023)	JAN/2023
I-83	252.204-7018	PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES (JAN 2023)	JAN/2023
I-84	252.204-7020	NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS (NOV 2023)	NOV/2023
I-85	252.205-7000	PROVISION OF INFORMATION TO COOPERATIVE AGREEMENT HOLDERS (JUN 2023)	JUN/2023
I-86	252.209-7004	SUBCONTRACTING WITH FIRMS THAT ARE OWNED OR CONTROLLED BY THE GOVERNMENT OF A TERRORIST COUNTRY	MAY/2019
I-87	252.215-7002	COST ESTIMATING SYSTEM REQUIREMENTS	DEC/2012
I-88	252.219-7004	SMALL BUSINESS SUBCONTRACTING PLAN (TEST PROGRAM)	DEC/2022
I-89	252.222-7006	RESTRICTIONS ON THE USE OF MANDATORY ARBITRATION AGREEMENTS (JAN 2023)	JAN/2023
I-90	252.223-7008	PROHIBITION OF HEXAVALENT CHROMIUM (JAN 2023)	JAN/2023
I-91	252.225-7001	BUY AMERICAN AND BALANCE OF PAYMENTS PROGRAM--BASIC (FEB 2024)	FEB/2024
I-92	252.225-7009	RESTRICTION ON ACQUISITION OF CERTAIN ARTICLES CONTAINING SPECIALTY METALS (JAN 2023)	JAN/2023
I-93	252.225-7012	PREFERENCE FOR CERTAIN DOMESTIC COMMODITIES	APR/2022

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I-94	252.225-7025	RESTRICTION ON ACQUISITION OF FORGINGS	DEC/2009
I-95	252.225-7041	CORRESPONDENCE IN ENGLISH	JUN/1997
I-96	252.225-7048	EXPORT-CONTROLLED ITEMS	JUN/2013
I-97	252.225-7052	RESTRICTION ON THE ACQUISITION OF CERTAIN MAGNETS, TANTALUM, AND TUNGSTEN (MAY 2024)	MAY/2024
I-98	252.225-7056	PROHIBITION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME (JAN 2023)	JAN/2023
I-99	252.226-7001	UTILIZATION OF INDIAN ORGANIZATIONS, INDIAN-OWNED ECONOMIC ENTERPRISES, AND NATIVE HAWAIIAN SMALL BUSINESS CONCERNS (JAN 2023)	JAN/2023
I-100	252.231-7000	SUPPLEMENTAL COST PRINCIPLES	DEC/1991
I-101	252.232-7003	ELECTRONIC SUBMISSION OF PAYMENT REQUESTS AND RECEIVING REPORTS	DEC/2018
I-102	252.232-7010	LEVIES ON CONTRACT PAYMENTS	DEC/2006
I-103	252.242-7005	CONTRACTOR BUSINESS SYSTEMS	FEB/2012
I-104	252.243-7001	PRICING OF CONTRACT MODIFICATIONS	DEC/1991
I-105	252.243-7002	REQUESTS FOR EQUITABLE ADJUSTMENT (DEC 2022)	DEC/2022
I-106	252.244-7000	SUBCONTRACTS FOR COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES (NOV 2023)	NOV/2023
I-107	252.244-7001	CONTRACTOR PURCHASING SYSTEM ADMINISTRATION (MAY2014) -- ALTERNATE I (MAY 2014)	MAY/2014
I-108	252.246-7007	CONTRACTOR COUNTERFEIT ELECTRONIC PART DETECTION AND AVOIDANCE SYSTEM (JAN2023)	JAN/2023
I-109	252.246-7008	SOURCES OF ELECTRONIC PARTS (JAN 2023)	JAN/2023
I-110	252.247-7023	TRANSPORTATION OF SUPPLIES BY SEA--BASIC (JAN 2023)	JAN/2023
I-111	252.247-7028	APPLICATION FOR U.S. GOVERNMENT SHIPPING DOCUMENTATION/INSTRUCTIONS	JUN/2012
I-112	252.251-7000	ORDERING FROM GOVERNMENT SUPPLY SOURCES	AUG/2012
I-113	52.209-1	QUALIFICATION REQUIREMENTS	FEB/1995

(a) Definition. Qualification requirement, as used in this clause, means a Government requirement for testing or other quality assurance demonstration that must be completed before award.

(b) One or more qualification requirements apply to the supplies or services covered by this contract. For those supplies or services requiring qualification, whether the covered product or service is an end item under this contract or simply a component of an end item, the product, manufacturer, or source must have demonstrated that it meets the standards prescribed for qualification before award of this contract. The product, manufacturer, or source must be qualified at the time of award whether or not the name of the product, manufacturer, or source is actually included on a qualified products list, qualified manufacturers list, or qualified bidders list. Offerors should contact the agency activity designated below to obtain all requirements that they or their products or services, or their subcontractors or their products or services, must satisfy to become qualified and to arrange for an opportunity to demonstrate their abilities to meet the standards specified for qualification.

DEVCOM, SYSTEM READINESS SUSTAINMENT DIVISION
QUALITY REQUIREMENTS BRANCH
5400 FOWLER ROAD
ATTN: FCDD-AMR-SS, MR. MICHAEL STIM
REDSTONE ARSENAL, AL 35898-5000
EMAIL: usarmy.redstone.devcom-avmc.mbx.amr-ss-sar@army.mil
TELEPHONE: 256-313-8975

(c) If an offeror, manufacturer, source, product or service covered by a qualification requirement has already met the standards specified, the relevant information noted below should be provided.

Offerors Name _____

Manufacturers Name _____

Sources Name _____

Item Name _____

Service Identification _____

Test Number _____ (to the extent known)

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(d) Even though a product or service subject to a qualification requirement is not itself an end item under this contract, the product, manufacturer, or source must nevertheless be qualified at the time of award of this contract. This is necessary whether the Contractor or a subcontractor will ultimately provide the product or service in question. If, after award, the Contracting Officer discovers that an applicable qualification requirement was not in fact met at the time of award, the Contracting Officer may either terminate this contract for default or allow performance to continue if adequate consideration is offered and the action is determined to be otherwise in the Governments best interests.

(e) If an offeror, manufacturer, source, product or service has met the qualification requirement but is not yet on a qualified products list, qualified manufacturers list, or qualified bidders list, the offeror must submit evidence of qualification prior to award of this contract. Unless determined to be in the Governments interest, award of this contract shall not be delayed to permit an offeror to submit evidence of qualification.

(f) Any change in location or ownership of the plant where a previously qualified product or service was manufactured or performed requires reevaluation of the qualification. Similarly, any change in location or ownership of a previously qualified manufacturer or source requires reevaluation of the qualification. The reevaluation must be accomplished before the date of award.

(End of Clause)

I-114 52.209-3 FIRST ARTICLE APPROVAL -- CONTRACTOR TESTING (SEP 1989) -- ALTERNATE JAN/1997
I (JAN 1997)

(a) The Contractor shall test 1 unit(s) of Lot/Item as specified in Sectopm B of the subsequent delivery order / contract. At least 30 calendar days before the beginning of first article tests, the Contractor shall notify the Contracting Officer, in writing, of the time and location of the testing so that the Government may witness the tests.

(b) The Contractor shall submit the first article test report within 15 calendar days from the date of this contract to DLA POST AWARD TEAM, DLAHSVPOSTAWARTEAM@DLA.MIL (SEE A NARRATIVE) marked First Article Test Report: Contract No. TBD, Lot/Item No. TBD. Within 45 calendar days after the Government receives the test report, the Contracting Officer shall notify the Contractor, in writing, of the conditional approval, approval, or disapproval of the first article. The notice of conditional approval or approval shall not relieve the Contractor from complying with all requirements of the specifications and all other terms and conditions of this contract. A notice of conditional approval shall state any further action required of the Contractor. A notice of disapproval shall cite reasons for the disapproval.

(c) If the first article is disapproved, the Contractor, upon Government request, shall repeat any or all first article tests. After each request for additional tests, the Contractor shall make any necessary changes, modifications, or repairs to the first article or select another first article for testing. All costs related to these tests are to be borne by the Contractor, including any and all costs for additional tests following a disapproval. The Contractor shall then conduct the tests and deliver another report to the Government under the terms and conditions and within the time specified by the Government. The Government shall take action on this report within the time specified in paragraph (b) above. The Government reserves the right to require an equitable adjustment of the contract price for any extension of the delivery schedule, or for any additional costs to the Government related to these tests.

(d) If the Contractor fails to deliver any first article report on time, or the Contracting Officer disapproves any first article, the Contractor shall be deemed to have failed to make delivery within the meaning of the Default clause of this contract.

(e) Unless otherwise provided in the contract, and if the approved first article is not consumed or destroyed in testing, the Contractor may deliver the approved first article as part of the contract quantity if it meets all contract requirements for acceptance.

(f) If the Government does not act within the time specified in paragraph (b) or (c) above, the Contracting Officer shall, upon timely written request from the Contractor, equitably adjust under the changes clause of this contract the delivery or performance dates and/or the contract price, and any other contractual term affected by the delay.

(g) Before first article approval, the acquisition of materials or components for, or the commencement of production of, the balance of the contract quantity is at the sole risk of the Contractor. Before first article approval, the costs thereof shall not be allocable to this contract for

- (1) progress payments, or
- (2) termination settlements if the contract is terminated for the convenience of the Government.

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(h) The Government may waive the requirement for first article approval test where supplies identical or similar to those called for in the schedule have been previously furnished by the offeror/contractor and have been accepted by the Government. The offeror/contractor may request a waiver.

(i) The Contractor shall produce both the first article and the production quantity at the same facility.

(End of Clause)

I-115 52.216-18 ORDERING AUG/2020
(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from DATE OF CONTRACT AWARD through 0,000 DAYS AFTER CONTRACT AWARD.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when--

- (1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;
- (2) If sent by fax, the Government transmits the order to the Contractor's fax number; or
- (3) If sent electronically, the Government either--

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

I-116 52.216-19 ORDER LIMITATIONS OCT/1995

(a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than TBD, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) Maximum order. The Contractor is not obligated to honor --

- (1) Any order for a single item in excess of TBD;
- (2) Any order for a combination of items in excess of TBD; or

(3) A series of orders from the same ordering office within 30 days that together call for quantities exceeding the limitation in subparagraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 30 days after issuance, with written notice stating the Contractors intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of Clause)

I-117 52.216-21 REQUIREMENTS OCT/1995

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Name of Offeror or Contractor:

- (a) This is a requirements contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies or services specified in the Schedule are estimates only and are not purchased by this contract. Except as this contract may otherwise provide, if the Government's requirements do not result in orders in the quantities described as "estimated" or "maximum" in the Schedule, that fact shall not constitute the basis for an equitable price adjustment.
- (b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. Subject to any limitations in the Order Limitations clause or elsewhere in this contract, the Contractor shall furnish to the Government all supplies or services specified in the Schedule and called for by orders issued in accordance with the Ordering clause. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.
- (c) Except as this contract otherwise provides, the Government shall order from the Contractor all the supplies or services specified in the Schedule that are required to be purchased by the Government activity or activities specified in the Schedule.
- (d) The Government is not required to purchase from the Contractor requirements in excess of any limit on total orders under this contract.
- (e) If the Government urgently requires delivery of any quantity of an item before the earliest date that delivery may be specified under this contract, and if the Contractor will not accept an order providing for the accelerated delivery, the Government may acquire the urgently required goods or services from another source.
- (f) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract after the last required delivery date as annotated on the delivery orders.

(End of Clause)

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| I-118 | 52.216-22 | INDEFINITE QUANTITY | OCT/1995 |
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- (a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.
- (b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the maximum. The Government shall order at least the quantity of supplies or services designated in the Schedule as the minimum.
- (c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.
- (d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contracts effective period; provided, that the Contractor shall not be required to make any deliveries under this contract if an order is issued after expiration date of last ordering period.

(End of Clause)

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| I-119 | 52.203-13 | CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT | NOV/2021 |
|-------|-----------|--|----------|
- (a) Definitions. As used in this clause--
- "Agent" means any individual, including a director, an officer, an employee, or an independent Contractor, authorized to act on behalf of the organization.
- "Full cooperation"--
- (1) Means disclosure to the Government of the information sufficient for law enforcement to identify the nature and extent of the offense and the individuals responsible for the conduct. It includes providing timely and complete response to Government auditors and

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investigators' request for documents and access to employees with information;

- (2) Does not foreclose any Contractor rights arising in law, the FAR, or the terms of the contract. It does not require--
 - (i) A Contractor to waive its attorney-client privilege or the protections afforded by the attorney work product doctrine; or
 - (ii) Any officer, director, owner, or employee of the Contractor, including a sole proprietor, to waive his or her attorney client privilege or Fifth Amendment rights; and
- (3) Does not restrict a Contractor from--
 - (i) Conducting an internal investigation; or
 - (ii) Defending a proceeding or dispute arising under the contract or related to a potential or disclosed violation.

"Principal" means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

"Subcontract" means any contract entered into by a subcontractor to furnish supplies or services for performance of a prime contract or a subcontract.

"Subcontractor" means any supplier, distributor, vendor, or firm that furnished supplies or services to or for a prime contractor or another subcontractor.

"United States," means the 50 States, the District of Columbia, and outlying areas.

(b) Code of business ethics and conduct.

- (1) Within 30 days after contract award, unless the Contracting Officer establishes a longer time period, the Contractor shall--
 - (i) Have a written code of business ethics and conduct; and
 - (ii) Make a copy of the code available to each employee engaged in performance of the contract.
- (2) The Contractor shall--
 - (i) Exercise due diligence to prevent and detect criminal conduct; and
 - (ii) Otherwise promote an organizational culture that encourages ethical conduct and a commitment to compliance with the law.
- (3)(i) The Contractor shall timely disclose, in writing, to the agency Office of the Inspector General (OIG), with a copy to the Contracting Officer, whenever, in connection with the award, performance, or closeout of this contract or any subcontract thereunder, the Contractor has credible evidence that a principal, employee, agent, or subcontractor of the Contractor has committed--
 - (A) A violation of Federal criminal law involving fraud, conflict of interest, bribery, or gratuity violations found in Title 18 of the United States Code; or
 - (B) A violation of the civil False Claims Act (31 U.S.C. 3729-3733).
- (ii) The Government, to the extent permitted by law and regulation, will safeguard and treat information obtained pursuant to the Contractors disclosure as confidential where the information has been marked confidential or proprietary by the company. To the extent permitted by law and regulation, such information will not be released by the Government to the public pursuant to a Freedom of Information Act request, 5 U.S.C. Section 552, without prior notification to the Contractor. The Government may transfer documents provided by the Contractor to any department or agency within the Executive Branch if the information relates to matters within the organizations jurisdiction.

(iii) If the violation relates to an order against a Governmentwide acquisition contract, a multi-agency contract, a multiple-award schedule contract such as the Federal Supply Schedule, or any other procurement instrument intended for use by multiple agencies, the Contractor shall notify the OIG of the ordering agency and the IG of the agency responsible for the basic contract.

(c) Business ethics awareness and compliance program and internal control system. This paragraph (c) does not apply if the Contractor has represented itself as a small business concern pursuant to the award of this contract or if this contract is for the acquisition of a commercial product or commercial service as defined at FAR 2.101. The Contractor shall establish the following within 90 days after contract award, unless the Contracting Officer establishes a longer time period:

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- (1) An ongoing business ethics awareness and compliance program.
- (i) This program shall include reasonable steps to communicate periodically and in a practical manner the Contractors standards and procedures and other aspects of the Contractors business ethics awareness and compliance program and internal control system, by conducting effective training programs and otherwise disseminating information appropriate to an individuals respective roles and responsibilities.

(ii) The training conducted under this program shall be provided to the Contractors principals and employees, and as appropriate, the Contractors agents and subcontractors.
- (2) An internal control system.
- (i) The Contractors internal control system shall--

(A) Establish standards and procedures to facilitate timely discovery of improper conduct in connection with Government contracts; and

(B) Ensure corrective measures are promptly instituted and carried out.

(ii) At a minimum, the Contractors internal control system shall provide for the following:

(A) Assignment of responsibility at a sufficiently high level and adequate resources to ensure effectiveness of the business ethics awareness and compliance program and internal control system.

(B) Reasonable efforts not to include an individual as a principal, whom due diligence would have exposed as having engaged in conduct that is in conflict with the Contractors code of business ethics and conduct.

(C) Periodic reviews of company business practices, procedures, policies, and internal controls for compliance with the Contractors code of business ethics and conduct and the special requirements of Government contracting, including--

(1) Monitoring and auditing to detect criminal conduct;

(2) Periodic evaluation of the effectiveness of the business ethics awareness and compliance program and internal control system, especially if criminal conduct has been detected; and

(3) Periodic assessment of the risk of criminal conduct, with appropriate steps to design, implement, or modify the business ethics awareness and compliance program and the internal control system as necessary to reduce the risk of criminal conduct identified through this process.

(D) An internal reporting mechanism, such as a hotline, which allows for anonymity or confidentiality, by which employees may report suspected instances of improper conduct, and instructions that encourage employees to make such reports.

(E) Disciplinary action for improper conduct or for failing to take reasonable steps to prevent or detect improper conduct.

(F) Timely disclosure, in writing, to the agency OIG, with a copy to the Contracting Officer, whenever, in connection with the award, performance, or closeout of any Government contract performed by the Contractor or a subcontract thereunder, the Contractor has credible evidence that a principal, employee, agent, or subcontractor of the Contractor has committed a violation of Federal criminal law involving fraud, conflict of interest, bribery, or gratuity violations found in Title 18 U.S.C. or a violation of the civil False Claims Act (31 U.S.C. 3729-3733).

(1) If a violation relates to more than one Government contract, the Contractor may make the disclosure to the agency OIG and Contracting Officer responsible for the largest dollar value contract impacted by the violation.

(2) If the violation relates to an order against a Governmentwide acquisition contract, a multi-agency contract, a multiple-award schedule contract such as the Federal Supply Schedule, or any other procurement instrument intended for use by multiple agencies, the contractor shall notify the OIG of the ordering agency and the IG of the agency responsible for the basic contract, and the respective agencies contracting officers.

(3) The disclosure requirement for an individual contract continues until at least 3 years after final payment on the contract.

(4) The Government will safeguard such disclosures in accordance with paragraph (b)(3)(ii) of this clause.

(G) Full cooperation with any Government agencies responsible for audits, investigations, or corrective actions.

(d) Subcontracts.

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(1) The Contractor shall include the substance of this clause, including this paragraph (d), in subcontracts that exceed the threshold specified in FAR 3.1004(a) on the date of subcontract award and a performance period of more than 120 days.

(2) In altering this clause to identify the appropriate parties, all disclosures of violation of the civil False Claims Act or of Federal criminal law shall be directed to the agency Office of the Inspector General, with a copy to the Contracting Officer.

(End of clause)

I-120 52.203-17 CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS AND REQUIREMENTS TO INFORM NOV/2023
EMPLOYEES OF WHISTLEBLOWER RIGHTS (NOV2023)

(a) This contract and employees working on this contract will be subject to the whistleblower rights and remedies established at 41 U.S.C. 4712 and Federal Acquisition Regulation (FAR) 3.900 through 3.905.

(b) The Contractor shall inform its employees in writing, in the predominant language of the workforce, of employee whistleblower rights and protections under 41 U.S.C. 4712, as described in FAR 3.900 through 3.905.

(c) The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts.

(End of clause)

I-121 52.204-19 INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS DEC/2014
The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

I-122 52.204-21 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS NOV/2021
(a) Definitions. As used in this clause--

"Covered contractor information system" means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

"Federal contract information" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government, but not including information provided by the Government to the public (such as on public Web sites) or simple transactional information, such as necessary to process payments.

"Information" means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

"Information system" means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502).

"Safeguarding" means measures or controls that are prescribed to protect information systems.

(b) Safeguarding requirements and procedures.

(1) The Contractor shall apply the following basic safeguarding requirements and procedures to protect covered contractor information systems. Requirements and procedures for basic safeguarding of covered contractor information systems shall include, at a minimum, the following security controls:

(i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).

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- (ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.
- (iii) Verify and control/limit connections to and use of external information systems.
- (iv) Control information posted or processed on publicly accessible information systems.
- (v) Identify information system users, processes acting on behalf of users, or devices.
- (vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.
- (vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.
- (viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.
- (ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.
- (x) Monitor, control, and protect organizational communications (i.e., information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.
- (xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.
- (xii) Identify, report, and correct information and information system flaws in a timely manner.
- (xiii) Provide protection from malicious code at appropriate locations within organizational information systems.
- (xiv) Update malicious code protection mechanisms when new releases are available.
- (xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

(2) Other requirements. This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal agencies and departments relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

(c) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products or commercial services, other than commercially available off-the-shelf items), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

(End of clause)

I-123	52.204-25	PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT	NOV/2021
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(a) Definitions. As used in this clause--

"Backhaul" means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

"Covered foreign country" means The Peoples Republic of China.

"Covered telecommunications equipment or services" means--

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

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(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

"Critical technology" means--

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled-

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

"Interconnection arrangements" means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connection of a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

"Reasonable inquiry" means an inquiry designed to uncover any information in the entity's possession about the identity of the producer or provider of covered telecommunications equipment or services used by the entity that excludes the need to include an internal or third-party audit.

"Roaming" means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

"Substantial or essential component" means any component necessary for the proper function or performance of a piece of equipment, system, or service.

(b) Prohibition. (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. The Contractor is prohibited from providing to the Government any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract, or extending or renewing a contract, with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract.

(c) Exceptions. This clause does not prohibit contractors from providing--

(1) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

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(2) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(d) Reporting requirement. (1) In the event the Contractor identifies covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, or the Contractor is notified of such by a subcontractor at any tier or by any other source, the Contractor shall report the information in paragraph (d)(2) of this clause to the Contracting Officer, unless elsewhere in this contract are established procedures for reporting the information; in the case of the Department of Defense, the Contractor shall report to the website at <https://dibnet.dod.mil> . For indefinite delivery contracts, the Contractor shall report to the Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report provided at <https://dibnet.dod.mil> .

(2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this clause:

(i) Within one business day from the date of such identification or notification: The contract number; the order number(s), if applicable; supplier name; supplier unique entity identifier (if known); supplier Commercial and Government Entity (CAGE) code (if known); brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this clause: Any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of covered telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

(e) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (b)(2), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

I-124 52.204-27 Prohibition on a ByteDance Covered Application (Jun 2023) JUN/2023
(a) Definitions. As used in this clause

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Information technology, as defined in 40 U.S.C. 11101(6)

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

(b) Prohibition. Section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328), the No TikTok on Government Devices Act, and its implementing guidance under Office of Management and Budget (OMB) Memorandum M-23-13, dated February 27, 2023, No TikTok on Government Devices Implementation Guidance, collectively prohibit the presence or use of a covered application on executive agency information technology, including certain equipment used by Federal contractors. The Contractor is prohibited from having or using a covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractors employees; however, this prohibition does not apply if the Contracting Officer provides written notification to the Contractor that an exception has been granted in

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accordance with OMB Memorandum M-23-13.

(c) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

I-125	52.215-11	PRICE REDUCTION FOR DEFECTIVE CERTIFIED COST OR PRICING DATA-- MODIFICATIONS (DEVIATION 2022-00001)	OCT/2021
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(a) This clause shall become operative only for any modification to this contract involving a pricing adjustment expected to exceed \$2 million on the date of execution of the modification, except that this clause does not apply to any modification if an exception under Federal Acquisition Regulation (FAR) 15.403-1(b) applies.

(b) If any price, including profit or fee, negotiated in connection with any modification under this clause, or any cost reimbursable under this contract, was increased by any significant amount because--

(1) The Contractor or a subcontractor furnished certified cost or pricing data that were not complete, accurate, and current as certified in its Certificate of Current Cost or Pricing Data;

(2) A subcontractor or prospective subcontractor furnished the Contractor certified cost or pricing data that were not complete, accurate, and current as certified in the Contractors Certificate of Current Cost or Pricing Data; or

(3) Any of these parties furnished data of any description that were not accurate, the price or cost shall be reduced accordingly and the contract shall be modified to reflect the reduction. This right to a price reduction is limited to that resulting from defects in data relating to modifications for which this clause becomes operative under paragraph (a) of this clause.

(c) Any reduction in the contract price under paragraph (b) of this clause due to defective data from a prospective subcontractor that was not subsequently awarded the subcontract shall be limited to the amount, plus applicable overhead and profit markup, by which--

- (1) The actual subcontract price; or
- (2) The actual cost to the Contractor, if there was no subcontract awarded, was less than the prospective subcontract cost estimate submitted by the Contractor; provided, that the actual subcontract price was not itself affected by defective certified cost or pricing data.

(d)(1) If the Contracting Officer determines under paragraph (b) of this clause that a price or cost reduction should be made, the Contractor agrees not to raise the following matters as a defense:

- (i) The Contractor or subcontractor was a sole source supplier or otherwise was in a superior bargaining position and thus the price of the contract would not have been modified even if accurate, complete, and current certified cost or pricing data had been submitted.
- (ii) The Contracting Officer should have known that the certified cost or pricing data in issue were defective even though the Contractor or subcontractor took no affirmative action to bring the character of the data to the attention of the Contracting Officer.
- (iii) The contract was based on an agreement about the total cost of the contract and there was no agreement about the cost of each item procured under the contract.

(iv) The Contractor or subcontractor did not submit a Certificate of Current Cost or Pricing Data.

(2)(i) Except as prohibited by subdivision (d)(2)(ii) of this clause, an offset in an amount determined appropriate by the Contracting Officer based upon the facts shall be allowed against the amount of a contract price reduction if--

(A) The Contractor certifies to the Contracting Officer that, to the best of the Contractors knowledge and belief, the Contractor is entitled to the offset in the amount requested; and

(B) The Contractor proves that the certified cost or pricing data were available before the as of date specified on its Certificate of Current Cost or Pricing Data, and that the data were not submitted before such date.

(ii) An offset shall not be allowed if--

(A) The understated data were known by the Contractor to be understated before the as of date specified on its Certificate of Current Cost or Pricing Data; or

(B) The Government proves that the facts demonstrate that the contract price would not have increased in the amount to be offset

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even if the available data had been submitted before the as of date specified on its Certificate of Current Cost or Pricing Data.

(e) If any reduction in the contract price under this clause reduces the price of items for which payment was made prior to the date of the modification reflecting the price reduction, the Contractor shall be liable to and shall pay the United States at the time such overpayment is repaid

(1) Interest compounded daily, as required by 26 U.S.C. 6622, on the amount of such overpayment to be computed from the date(s) of overpayment to the Contractor to the date the Government is repaid by the Contractor at the applicable underpayment rate effective for each quarter prescribed by the Secretary of the Treasury under 26 U.S.C. 6621(a)(2); and

(2) A penalty equal to the amount of the overpayment, if the Contractor or subcontractor knowingly submitted certified cost or pricing data that were incomplete, inaccurate, or noncurrent.

(End of clause)

I-126 52.215-12 SUBCONTRACTOR CERTIFIED COST OR PRICING DATA (DEVIATION 2022-00001) OCT/2021

(a) Before awarding any subcontract expected to exceed \$2 million, on the date of agreement on price or the date of award, whichever is later; or before pricing any subcontract modification involving a pricing adjustment expected to exceed \$2 million, the Contractor shall require the subcontractor to submit certified cost or pricing data (actually or by specific identification in writing), in accordance with Federal Acquisition Regulation (FAR) 15.408, Table 15-2 (to include any information reasonably required to explain the subcontractors estimating process such as the judgmental factors applied and the mathematical or other methods used in the estimate, including those used in projecting from known data, and the nature and amount of any contingencies included in the price), unless an exception under FAR 15.403-1(b) applies. If the \$2 million threshold for submission of certified cost or pricing data is adjusted for inflation as set forth in FAR 1.109(a), then pursuant to FAR 1.109(d) the changed threshold applies throughout the remaining term of the contract, unless there is a subsequent threshold adjustment.

(b) The Contractor shall require the subcontractor to certify in substantially the form prescribed in FAR 15.406-2 that, to the best of its knowledge and belief, the data submitted under paragraph (a) of this clause were accurate, complete, and current as of the date of agreement on the negotiated price of the subcontract or subcontract modification.

(c) In each subcontract that, when entered into, exceeds \$2 million, the Contractor shall insert either--

(1) The substance of this clause, including this paragraph (c), if paragraph (a) of this clause requires submission of certified cost or pricing data for the subcontract; or

(2) The substance of the clause at 52.215-13, Subcontractor Certified Cost or Pricing DataModifications (DEVIATION 2022-00001).

(End of clause)

I-127 52.215-13 SUBCONTRACTOR CERTIFIED COST OR PRICING DATA--MODIFICATIONS OCT/2021
(DEVIATION 2022-00001)

(a) The requirements of paragraphs (b) and (c) of this clause shall--

(1) Become operative only for any modification to this contract involving a pricing adjustment expected to exceed \$2 million on the date of execution of the modification; and

(2) Be limited to such modifications.

(b) Before awarding any subcontract expected to exceed \$2 million, on the date of agreement on price or the date of award, whichever is later; or before pricing any subcontract modification involving a pricing adjustment expected to exceed \$2 million, the Contractor shall require the subcontractor to submit certified cost or pricing data (actually or by specific identification in writing), in accordance with Federal Acquisition Regulation (FAR) 15.408, Table 15-2 (to include any information reasonably required to explain the subcontractors estimating process such as the judgmental factors applied and the mathematical or other methods used in the estimate, including those used in projecting from known data, and the nature and amount of any contingencies included in the price), unless an exception under FAR 15.403-1(b) applies. If the \$2 million threshold for submission of certified cost or pricing data is adjusted for inflation as set forth in FAR 1.109(a), then pursuant to FAR 1.109(d) the changed threshold applies throughout the remaining term of the contract, unless there is a subsequent threshold adjustment.

(c) The Contractor shall require the subcontractor to certify in substantially the form prescribed in FAR 15.406-2 that, to the best of its knowledge and belief, the data submitted under paragraph (b) of this clause were accurate, complete, and current as of the date of agreement on the negotiated price of the subcontract or subcontract modification.

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(d) The Contractor shall insert the substance of this clause, including this paragraph (d), in each subcontract that exceeds \$2 million on the date of agreement on price or the date of award, whichever is later.

(End of clause)

I-128 52.215-19 NOTIFICATION OF OWNERSHIP CHANGES OCT/1997

(a) The Contractor shall make the following notifications in writing:

(1) When the Contractor becomes aware that a change in its ownership has occurred, or is certain to occur, that could result in changes in the valuation of its capitalized assets in the accounting records, the Contractor shall notify the Administrative Contracting Officer (ACO) within 30 days.

(2) The Contractor shall also notify the ACO within 30 days whenever changes to asset valuations or any other cost changes have occurred or are certain to occur as a result of a change in ownership.

(b) The Contractor shall --

- (1) Maintain current, accurate, and complete inventory records of assets and their costs;
- (2) Provide the ACO or designated representative ready access to the records upon request;
- (3) Ensure that all individual and grouped assets, their capitalized values, accumulated depreciation or amortization, and remaining useful lives are identified accurately before and after each of the Contractors ownership changes; and
- (4) Retain and continue to maintain depreciation and amortization schedules based on the asset records maintained before each Contractor ownership change.

(c) The Contractor shall include the substance of this clause in all subcontracts under this contract that meet the applicability requirement of FAR 15.408(k).

(End of Clause)

I-129 52.219-28 POST-AWARD SMALL BUSINESS PROGRAM REPRESENTATION (FEB 2024) FEB/2024

(a) Definitions. As used in this clause

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern

- (1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.
- (2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

- (1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.
- (2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract

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to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, when the Contracting Officer explicitly requires it for an order issued under a multiple-award contract.

(d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards> .

(e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraph (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting office in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.

(g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it __ is, __ is not a small business concern under NAICS Code 335999 assigned to contract number TBD.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it __ is, __ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it __ is, __ is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it __ is, __ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __.]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it __ is, __ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __ .]

(6) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it __ is, __ is not a veteran-owned small business concern.

(7) [Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.] The Contractor represents that it __ is, __ is not a service-disabled veteran-owned small business concern.

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(8) Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program. The Contractor represents that it is, is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .]

(9) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that

(i) It is, is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It is, is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

[Contractor to sign and date and insert authorized signer's name and title._____]

(End of clause)

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52.222-19

CHILD LABOR--COOPERATION WITH AUTHORITIES AND REMEDIES (FEB 2024)

FEB/2024

(a) Applicability. This clause does not apply to the extent that the Contractor is supplying end products mined, produced, or manufactured in--

(1) Israel, and the anticipated value of the acquisition is \$50,000 or more;

(2) Mexico, and the anticipated value of the acquisition is \$102,280 or more; or

(3) Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Italy, Japan, Korea, Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, North Macedonia, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or the United Kingdom and the anticipated value of the acquisition is \$174,000 or more.

(b) Cooperation with Authorities. To enforce the laws prohibiting the manufacture or importation of products mined, produced, or manufactured by forced or indentured child labor, authorized officials may need to conduct investigations to determine whether forced or indentured child labor was used to mine, produce, or manufacture any product furnished under this contract. If the solicitation includes the provision 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products, or the equivalent at 52.212-3(i), the Contractor agrees to cooperate fully with authorized officials of the contracting agency, the Department of the Treasury, or the Department of Justice by providing reasonable access to records, documents, persons, or premises upon reasonable request by the authorized officials.

(c) Violations. The Government may impose remedies set forth in paragraph (d) for the following violations:

(1) The Contractor has submitted a false certification regarding knowledge of the use of forced or indentured child labor for listed end products.

(2) The Contractor has failed to cooperate, if required, in accordance with paragraph (b) of this clause, with an investigation of the use of forced or indentured child labor by an Inspector General, Attorney General, or the Secretary of the Treasury.

(3) The Contractor uses forced or indentured child labor in its mining, production, or manufacturing processes.

(4) The Contractor has furnished under the contract end products or components that have been mined, produced, or manufactured wholly or in part by forced or indentured child labor. (The Government will not pursue remedies at paragraph (d)(2) or paragraph (d)(3) of this clause unless sufficient evidence indicates that the Contractor knew of the violation.)

(d) Remedies.

(1) The Contracting Officer may terminate the contract.

(2) The suspending official may suspend the Contractor in accordance with procedures in FAR Subpart 9.4.

(3) The debarring official may debar the Contractor for a period not to exceed 3 years in accordance with the procedures in FAR Subpart 9.4.

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(End of clause)

I-131 52.222-35 EQUAL OPPORTUNITY FOR VETERANS JUN/2020
(a) Definitions. As used in this clause--

"Active duty wartime or campaign badge veteran," "Armed Forces service medal veteran," "disabled veteran," "protected veteran," "qualified disabled veteran," and "recently separated veteran" have the meanings given at Federal Acquisition Regulation (FAR) 22.1301.

(b) Equal opportunity clause. The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-300.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified protected veterans, and requires affirmative action by the Contractor to employ and advance in employment qualified protected veterans.

(c) Subcontracts. The Contractor shall insert the terms of this clause in subcontracts valued at or above the threshold specified in FAR 22.1303(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary of Labor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

(End of clause)

I-132 52.222-36 EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES JUN/2020
(a) Equal opportunity clause. The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-741.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified individuals on the basis of disability, and requires affirmative action by the Contractor to employ and advance in employment qualified individuals with disabilities.

(b) Subcontracts. The Contractor shall include the terms of this clause in every subcontract or purchase order in excess of the threshold specified in Federal Acquisition Regulation (FAR) 22.1408(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary, so that such provisions will be binding upon each subcontractor or vendor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs of the U.S. Department of Labor, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

(End of clause)

I-133 52.230-2 COST ACCOUNTING STANDARDS JUN/2020
(a) Unless the contract is exempt under 48 CFR 9903.201-1 and 9903.201-2, the provisions of 48 CFR Part 9903 are incorporated herein by reference and the Contractor, in connection with this contract, shall--

(1) (CAS-covered Contracts Only) By submission of a Disclosure Statement, disclose in writing the Contractors cost accounting practices as required by 48 CFR 9903.202-1 through 9903.202-5, including methods of distinguishing direct costs from indirect costs and the basis used for allocating indirect costs. The practices disclosed for this contract shall be the same as the practices currently disclosed and applied on all other contracts and subcontracts being performed by the Contractor and which contain a Cost Accounting Standards (CAS) clause. If the Contractor has notified the Contracting Officer that the Disclosure Statement contains trade secrets and commercial or financial information which is privileged and confidential, the Disclosure Statement shall be protected and shall not be released outside of the Government.

(2) Follow consistently the Contractors cost accounting practices in accumulating and reporting contract performance cost data concerning this contract. If any change in cost accounting practices is made for the purposes of any contract or subcontract subject to CAS requirements, the change must be applied prospectively to this contract and the Disclosure Statement must be amended accordingly. If the contract price or cost allowance of this contract is affected by such changes, adjustment shall be made in accordance with paragraph (a)(4) or (a)(5) of this clause, as appropriate.

(3) Comply with all CAS, including any modifications and interpretations indicated thereto contained in 48 CFR Part 9904, in effect on the date of award of this contract or, if the Contractor has submitted certified cost or pricing data, on the date of final agreement on price as shown on the Contractors signed certificate of current cost or pricing data. The Contractor shall also comply with any CAS (or modifications to CAS) which hereafter become applicable to a contract or subcontract of the Contractor. Such compliance shall be required prospectively from the date of applicability to such contract or subcontract.

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(4)(i) (Agree to an equitable adjustment as provided in the Changes clause of this contract if the contract cost is affected by a change which, pursuant to paragraph (a)(3) of this clause, the Contractor is required to make to the Contractors established cost accounting practices.

(ii) Negotiate with the Contracting Officer to determine the terms and conditions under which a change may be made to a cost accounting practice, other than a change made under other provisions of paragraph (a)(4) of this clause; provided that no agreement may be made under this provision that will increase costs paid by the United States.

(iii) When the parties agree to a change to a cost accounting practice, other than a change under subdivision (a)(4)(i) of this clause, negotiate an equitable adjustment as provided in the Changes clause of this contract.

(5) Agree to an adjustment of the contract price or cost allowance, as appropriate, if the Contractor or a subcontractor fails to comply with an applicable Cost Accounting Standard, or to follow any cost accounting practice consistently and such failure results in any increased costs paid by the United States. Such adjustment shall provide for recovery of the increased costs to the United States, together with interest thereon computed at the annual rate established under section 6621(a)(2) of the Internal Revenue Code of 1986 (26 U.S.C. 6621(a)(2)) for such period, from the time the payment by the United States was made to the time the adjustment is effected. In no case shall the Government recover costs greater than the increased cost to the Government, in the aggregate, on the relevant contracts subject to the price adjustment, unless the Contractor made a change in its cost accounting practices of which it was aware or should have been aware at the time of price negotiations and which it failed to disclose to the Government.

(b) If the parties fail to agree whether the Contractor or a subcontractor has complied with an applicable CAS in 48 CFR 9904 or a CAS rule or regulation in 48 CFR 9903 and as to any cost adjustment demanded by the United States, such failure to agree will constitute a dispute under 41 U.S.C. chapter 71, Contract Disputes.

(c) The Contractor shall permit any authorized representatives of the Government to examine and make copies of any documents, papers, or records relating to compliance with the requirements of this clause.

(d) The Contractor shall include in all negotiated subcontracts which the Contractor enters into, the substance of this clause, except paragraph (b), and shall require such inclusion in all other subcontracts, of any tier, including the obligation to comply with all CAS in effect on the subcontractors award date or if the subcontractor has submitted certified cost or pricing data, on the date of final agreement on price as shown on the subcontractors signed Certificate of Current Cost or Pricing Data. If the subcontract is awarded to a business unit which pursuant to 48 CFR 9903.201-2 is subject to other types of CAS coverage, the substance of the applicable clause set forth in subsection 30.201-4 of the Federal Acquisition Regulation (FAR) shall be inserted. This requirement shall apply only to negotiated subcontracts in excess of the lower CAS threshold specified in FAR 30.201-4(b) on the date of subcontract award, except that the requirement shall not apply to negotiated subcontracts otherwise exempt from the requirement to include a CAS clause as specified in 48 CFR 9903.201-1.

(End of clause)

I-134 52.252-2 CLAUSES INCORPORATED BY REFERENCE FEB/1998

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

(End of Clause)

I-135 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES NOV/2020

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any DoD Federal Acquisition Regulation Supplement (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Clause)

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I-136252.225-7967PROHIBITION REGARDING RUSSIAN FOSSIL FUEL BUSINESS OPERATIONS (DEVIATION 2024-00006, REVISION 1) (FEB 2024)FEB/2024

(a) Definitions. As used in this clause
 Business operations means knowingly engaging in commerce in any form, including acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other known apparatus of business or commerce. The term does not include

- (1) Any shipment subject to price caps as specified in the
- (i) Statement of the G7 and Australia on a Price Cap for Seaborne Russian-Origin Crude Oil, issued on December 2, 2022, between member countries of that coalition; or
- (ii) Statement of the G7 and Australia on Price Caps for Seaborne Russian-Origin Petroleum Products Berlin, Brussels, Canberra, London, Ottawa, Paris, Rome, Tokyo, Washington, issued on February 4, 2023, between such members, if such shipment complies with the applicable price caps; or
- (A) Actions taken for the benefit of the country of Ukraine, as determined by the Secretary; or
- (B) Actions taken to support the suspension or termination of business operations for commercial activities during the period beginning on the effective date and ending on December 31, 2029, including

- (1) Any action to secure or divest from facilities, property, or equipment;
- (2) The provision of products or services provided to reduce or eliminate operations in territory internationally recognized as the Russian Federation or to comply with sanctions relating to the Russian Federation; and;
- (3) Activities that are incident to liquidating, dissolving, or winding down a subsidiary or legal entity in Russia.

Fossil fuel company means an entity or individual that

- (1) Carries out oil, gas, or coal exploration, development, or production activities;
- (2) Processes or refines oil, gas, or coal; or
- (3) Transports, or constructs facilities for the transportation of, Russian oil, gas, or coal.

(b) Prohibition. In accordance with section 804 of the National Defense Authorization Act for Fiscal Year 2024 (Pub. L. 118-31), the Contractor is prohibited from entering into a subcontract or other contractual instrument for the procurement of products or services with any entity or individual that is known to be, or that is known to have fossil fuel business operations with an entity or individual that is, not less than 50 percent owned, individually or collectively, by

- (1) An authority of the government of the Russian Federation; or
- (2) A fossil fuel company that operates in the Russian Federation, except if the fossil fuel company transports oil or gas

- (i) Through the Russian Federation for sale outside of the Russian Federation; and
- (ii) That was extracted from a country other than the Russian Federation with respect to the energy sector of which the President has not imposed sanctions as of the date on which the contract is awarded.

(c) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services.

(End of clause

I-137252.225-7972PROHIBITION ON THE PROCUREMENT OF FOREIGN-MADE UNMANNED AIRCRAFT SYSTEMS (DEVIATION 2020-00015)MAY/2020

(a) Prohibition. In accordance with section 848 of the National Defense Authorization Act for Fiscal Year 2020, the Contractor shall

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not provide or use in the performance of this contract--

- (1) An unmanned aircraft system (UAS), or any related services or equipment, that--
- (i) Is manufactured in the Peoples Republic of China or by an entity domiciled in the Peoples Republic of China;
- (ii) Uses flight controllers, radios, data transmission devices, cameras, or gimbals manufactured in the Peoples Republic of China or by an entity domiciled in the Peoples Republic of China;
- (iii) Uses a ground control system or operating software developed in the Peoples Republic of China or by an entity domiciled in the Peoples Republic of China; or
- (iv) Uses network connectivity or data storage located in, or administered by an entity domiciled in, the Peoples Republic of China; or
- (2) A system for the detection or identification of a UAS, or any related services or equipment, that is manufactured--
- (i) In the Peoples Republic of China; or
- (ii) By an entity domiciled in the Peoples Republic of China.
- (b) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (b), in all subcontracts or other contractual instruments, including subcontracts for the acquisition of commercial items.

(End of clause)

DLAD 52.233-9001 DISPUTES AGREEMENT TO USE ALTERNATIVE DISPUTE RESOLUTION (JUN 2020)

(A) THE PARTIES AGREE TO NEGOTIATE WITH EACH OTHER TO TRY TO RESOLVE ANY DISPUTES THAT MAY ARISE. IF UNASSISTED NEGOTIATIONS ARE UNSUCCESSFUL, THE PARTIES WILL USE ALTERNATIVE DISPUTE RESOLUTION (ADR) TECHNIQUES TO TRY TO RESOLVE THE DISPUTE. LITIGATION WILL ONLY BE CONSIDERED AS A LAST RESORT WHEN ADR IS UNSUCCESSFUL OR HAS BEEN DOCUMENTED BY THE PARTY REJECTING ADR TO BE INAPPROPRIATE FOR RESOLVING THE DISPUTE.

(B) BEFORE EITHER PARTY DETERMINES ADR INAPPROPRIATE, THAT PARTY MUST DISCUSS THE USE OF ADR WITH THE OTHER PARTY. THE DOCUMENTATION REJECTING ADR MUST BE SIGNED BY AN OFFICIAL AUTHORIZED TO BIND THE CONTRACTOR (SEE FAR 52.233-1), OR, FOR THE AGENCY, BY THE CONTRACTING OFFICER, AND APPROVED AT A LEVEL ABOVE THE CONTRACTING OFFICER AFTER CONSULTATION WITH THE ADR SPECIALIST AND LEGAL COUNSEL. CONTRACTOR PERSONNEL ARE ALSO ENCOURAGED TO INCLUDE THE ADR SPECIALIST IN THEIR DISCUSSIONS WITH THE CONTRACTING OFFICER BEFORE DETERMINING ADR TO BE INAPPROPRIATE.

(C) IF YOU WISH TO OPT OUT OF THIS CLAUSE, CHECK HERE []. ALTERNATE WORDING MAY BE NEGOTIATED WITH THE CONTRACTING OFFICER.

(END OF PROVISION)

*** END OF NARRATIVE I0001 ***

Name of Offeror or Contractor:

SECTION J - LIST OF ATTACHMENTS

List of Addenda	Title	Date	Number of Pages	Transmitted By
Attachment 0001	ORIENTATION ON FIRST ARTICLE TEST	26-APR-2023	003	
Attachment 0002	CONTRACT TDPL 0862	08-JUL-2024	003	
Attachment 0003	CONTRACT TDPL 8043	11-JUL-2024	004	
Attachment 0004	CONTRACT TDPL 5495	19-JUL-2024	003	
Attachment 0005	CONTRACT TDPL 1970	18-JUL-2024	003	
Attachment 0006	1350747-0 FAT WORKSHEET REVISION E	12-MAR-2020	001	
Attachment 0007	13506038-5 FAT WORKSHEET REVISION E	12-MAR-2020	001	
Attachment 0008	1350816-4 FAT WORKSHEET REVISION E	12-MAR-2020	001	

Name of Offeror or Contractor:

SECTION K - REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF OFFERORS

This document incorporates one or more provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a provision may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>
For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the provision requires additional or unique information, then that information is provided immediately after the provision title.

	Regulatory Cite	Title	Date
K-1	252.203-7005	REPRESENTATION RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (Sep 2022)	SEP/2022
K-2	252.204-7008	COMPLIANCE WITH SAFEGUARDING COVERED DEFENSE INFORMATION CONTROLS	OCT/2016
K-3	252.225-7055	Representation Regarding Business Operations with the Maduro Regime	MAY/2022
K-4	252.227-7017	IDENTIFICATION AND ASSERTION OF USE, RELEASE, OR DISCLOSURE RESTRICTIONS (JAN 2023)	JAN/2023
K-5	252.227-7028	TECHNICAL DATA OR COMPUTER SOFTWARE PREVIOUSLY DELIVERED TO THE GOVERNMENT	JUN/1995
K-6	52.204-8	ANNUAL REPRESENTATIONS AND CERTIFICATIONS (MAY 2024)	MAY/2024

(1) The North American Industry Classification System (NAICS) code for this acquisition is 333599[insert NAICS code].

(2) The small business size standard is 600.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition

- (i) Is set aside for small business and has a value above the simplified acquisition threshold;
- (ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or
- (iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

- (1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.
- (2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (d) applies.

☐ (ii) Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

- (1) The following representations or certifications in SAM are applicable to this solicitation as indicated:
- (i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless

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Name of Offeror or Contractor:

- (A) The acquisition is to be made under the simplified acquisition procedures in part 13;
- (B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or
- (C) The solicitation is for utility services for which rates are set by law or regulation.
- (ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.
- (iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.
- (iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.
- (v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-
- (A) Are not set aside for small business concerns;
- (B) Exceed the simplified acquisition threshold; and
- (C) Are for contracts that will be performed in the United States or its outlying areas.
- (vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.
- (vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.
- (viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.
- (ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.
- (x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.
- (xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.
- (xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).
- (A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.
- (B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.
- (C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.
- (xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).
- (xiv) 52.222-22, Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at 52.222-26, Equal Opportunity.
- (xv) 52.222-25, Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at 52.222-26, Equal Opportunity.
- (xvi) 52.222-38, Compliance with Veterans Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.
- (xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of

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biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

- (xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPADesignated items.
- (xix) 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals-Representation. This provision applies to solicitations that include the clause at 52.204-7.
- (xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.
- (xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.
- (A) If the acquisition value is less than \$50,000, the basic provision applies.
- (B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.
- (C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.
- (xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.
- (xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.
- (xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.
- (xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.
- (2) The following representations or certifications are applicable as indicated by the Contracting Officer:
- [Contracting Officer check as appropriate.]
- ☐ (i) 52.204-17, Ownership or Control of Offeror.
- ☐ (ii) 52.204-20, Predecessor of Offeror.
- ☐ (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.
- ☐ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.
- ☐ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.
- ☐ (vi) 52.223-9, with its Alternate I, Estimate of Percentage of Recovered Material Content for EPADesignated Products (Alternate I only).
- ☐ (vii) 52.227-6, Royalty Information.
- ☐ (A) Basic.
- ☐ (B) Alternate I.
- ☐ (viii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.
- (d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov> . After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

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FAR Clause # Title Date Change

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

Alternate I (Mar 2023). As prescribed in 4.1202(a) , substitute the following paragraph (a) for paragraph (a) of the basic provision:

(a)(1) The North American Industry Classification System (NAICS) codes and corresponding size standards for this acquisition are as follows; the categories or portions these NAICS codes are assigned to are specified elsewhere in the solicitation:

NAICS Code	Size standard

[Contracting Officer to insert NAICS codes and size standards].

(2) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce, (i.e., nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(End of provision)

K-7 252.204-7007 ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS NOV/2023
Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at FAR 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

- ☐ (i) Paragraph (e) applies.
- ☐ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.
- (d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:
- (i) 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment-Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages

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or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations and contracts when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations and contracts when contract performance will be in Spain.

(viii) 252.247-7022, Representation of Extent of Transportation by Sea. Applies to all solicitations except those for direct purchase of ocean transportation services or those with an anticipated value at or below the simplified acquisition threshold.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer:

- ___ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.
- ___ (ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.
- ___ (iii) 252.225-7020, Trade Agreements Certificate.
 - ___ Use with Alternate I.
- ___ (iv) 252.225-7031, Secondary Arab Boycott of Israel.
- ___ (v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.
 - ___ Use with Alternate I.
 - ___ Use with Alternate II.
 - ___ Use with Alternate III.
 - ___ Use with Alternate IV.
 - ___ Use with Alternate V.
- ___ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.
- ___ (vii) 252.232-7015, Performance-Based Payments--Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov> . After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS Provision #	Title	Date	Change
_____	_____	_____	_____
_____	_____	_____	_____

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Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

K-8 52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT NOV/2021

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services--Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in the provision at 52.204-26, Covered Telecommunications Equipment or Services--Representation, or in paragraph (v) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Items.

(a) Definitions. As used in this provision--

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition. (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(d) Representations. The Offeror represents that--

(1) It [] will, [] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

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Name of Offeror or Contractor:

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that--

It [] does, [] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures. (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

Name of Offeror or Contractor:

(b) Each offeror who believes that acquisitions in different quantities would be more advantageous is invited to recommend an economic purchase quantity. If different quantities are recommended, a total and a unit price must be quoted for applicable items. An economic purchase quantity is that quantity at which a significant price break occurs. If there are significant price breaks at different quantity points, this information is desired as well.

OFFEROR RECOMMENDATIONS

ITEM	QUANTITY	PRICE QUOTATION	TOTAL

(c) The information requested in this provision is being solicited to avoid acquisitions in disadvantageous quantities and to assist the Government in developing a data base for future acquisitions of these items. However, the Government reserves the right to amend or cancel the solicitation and resolicit with respect to any individual item in the event quotations received and the Governments requirements indicate that different quantities should be acquired.

(End of Provision)

K-1052.209-7INFORMATION REGARDING RESPONSIBILITY MATTERS

OCT/2018

(a) Definitions. As used in this provision--

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means--

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [] has [] does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
- (iii) In an administrative proceeding, a finding of fault and liability that results in--

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

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(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> .

(End of provision)

K-11 52.209-13 VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS--CERTIFICATION NOV/2021

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined at FAR 2.101.

(b) Certification. [Offeror shall check either (1) or (2).]

_____ (1) The Offeror certifies that--

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/> ; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/> ; or

_____ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If there may have been such activity, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

- (i) An inability to certify compliance.
- (ii) An inability to conclude compliance.
- (iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review

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the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless--

- (1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or
- (2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has--

- (i) Waived application under U.S.C. 2593e(d) or (e); or
- (ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C.2593e(b).

(e) Remedies. The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

K-12 52.225-18 PLACE OF MANUFACTURE AUG/2018

(a) Definitions. As used in this provision--

"Manufactured end product" means any end product in product and service codes (PSCs) 1000-9999, except--

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

"Place of manufacture" means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

(b) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly

- [] (1) In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or
- [] (2) Outside the United States.

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(End of provision)

K-13 52.230-1 COST ACCOUNTING STANDARDS NOTICES AND CERTIFICATION JUN/2020
Note: This notice does not apply to small businesses or foreign governments. This notice is in three parts, identified by Roman numerals I through III.

Offerors shall examine each part and provide the requested information in order to determine Cost Accounting Standards (CAS) requirements applicable to any resultant contract.

If the offeror is an educational institution, Part II does not apply unless the contemplated contract will be subject to full or modified CAS coverage pursuant to 48 CFR 9903.201-2(c)(5) or 9903.201-2(c)(6), respectively.

I. Disclosure Statement-Cost Accounting Practices and Certification

- (a) Any contract in excess of the lower CAS threshold specified in Federal Acquisition Regulation (FAR) 30.201-4(b) resulting from this solicitation will be subject to the requirements of the Cost Accounting Standards Board (48 CFR chapter 99), except for those contracts which are exempt as specified in 48 CFR 9903.201-1.
- (b) Any offeror submitting a proposal which, if accepted, will result in a contract subject to the requirements of 48 CFR chapter 99 must, as a condition of contracting, submit a Disclosure Statement as required by 48 CFR 9903.202. When required, the Disclosure Statement must be submitted as a part of the offerors proposal under this solicitation unless the offeror has already submitted a Disclosure Statement disclosing the practices used in connection with the pricing of this proposal. If an applicable Disclosure Statement has already been submitted, the offeror may satisfy the requirement for submission by providing the information requested in paragraph (c) of Part I of this provision.

Caution: In the absence of specific regulations or agreement, a practice disclosed in a Disclosure Statement shall not, by virtue of such disclosure, be deemed to be a proper, approved, or agreed-to practice for pricing proposals or accumulating and reporting contract performance cost data.

(c) Check the appropriate box below:

- ☐ (1) Certificate of Concurrent Submission of Disclosure Statement. The offeror hereby certifies that, as a part of the offer, copies of the Disclosure Statement have been submitted as follows:
- (i) Original and one copy to the cognizant Administrative Contracting Officer (ACO) or cognizant Federal agency official authorized to act in that capacity (Federal official), as applicable; and
- (ii) One copy to the cognizant Federal auditor.

(Disclosure must be on Form No. CASB DS-1 or CASB DS-2, as applicable. Forms may be obtained from the cognizant ACO or Federal official.)

Date of Disclosure Statement: _____ Name and Address of Cognizant ACO or Federal Official Where Filed: _____.

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the Disclosure Statement.

- ☐ (2) Certificate of Previously Submitted Disclosure Statement. The offeror hereby certifies that the required Disclosure Statement was filed as follows:
- Date of Disclosure Statement: _____ Name and Address of Cognizant ACO or Federal Official Where Filed: _____.

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the applicable Disclosure Statement.

- ☐ (3) Certificate of Monetary Exemption. The offeror hereby certifies that the offeror, together with all divisions, subsidiaries, and affiliates under common control, did not receive net awards of negotiated prime contracts and subcontracts subject to CAS totaling \$50 million or more in the cost accounting period immediately preceding the period in which this proposal was submitted. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

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[] (4) Certificate of Interim Exemption. The offeror hereby certifies that (i) the offeror first exceeded the monetary exemption for disclosure, as defined in (3) of this subsection, in the cost accounting period immediately preceding the period in which this offer was submitted and (ii) in accordance with 48 CFR 9903.202-1, the offeror is not yet required to submit a Disclosure Statement. The offeror further certifies that if an award resulting from this proposal has not been made within 90 days after the end of that period, the offeror will immediately submit a revised certificate to the Contracting Officer, in the form specified under paragraph (c)(1) or (c)(2) of Part I of this provision, as appropriate, to verify submission of a completed Disclosure Statement.

Caution: Offerors currently required to disclose because they were awarded a CAS-covered prime contract or subcontract of \$50 million or more in the current cost accounting period may not claim this exemption (4). Further, the exemption applies only in connection with proposals submitted before expiration of the 90-day period following the cost accounting period in which the monetary exemption was exceeded.

II. Cost Accounting Standards-Eligibility for Modified Contract Coverage

If the offeror is eligible to use the modified provisions of 48 CFR 9903.201-2(b) and elects to do so, the offeror shall indicate by checking the box below. Checking the box below shall mean that the resultant contract is subject to the Disclosure and Consistency of Cost Accounting Practices clause in lieu of the Cost Accounting Standards clause.

[] The offeror hereby claims an exemption from the Cost Accounting Standards clause under the provisions of 48 CFR 9903.201-2(b) and certifies that the offeror is eligible for use of the Disclosure and Consistency of Cost Accounting Practices clause because during the cost accounting period immediately preceding the period in which this proposal was submitted, the offeror received less than \$50 million in awards of CAS-covered prime contracts and subcontracts. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

Caution: An offeror may not claim the above eligibility for modified contract coverage if this proposal is expected to result in the award of a CAS-covered contract of \$50 million or more or if, during its current cost accounting period, the offeror has been awarded a single CAS-covered prime contract or subcontract of \$50 million or more.

III. Additional Cost Accounting Standards Applicable to Existing Contracts

The offeror shall indicate below whether award of the contemplated contract would, in accordance with paragraph (a)(3) of the Cost Accounting Standards clause, require a change in established cost accounting practices affecting existing contracts and subcontracts.

[] Yes [] No

(End of provision)

K-14 52.230-7 PROPOSAL DISCLOSURE--COST ACCOUNTING PRACTICE CHANGES APR/2005

The offeror shall check yes below if the contract award will result in a required or unilateral change in cost accounting practice, including unilateral changes requested to be desirable changes.

[] Yes [] No

If the offeror checked Yes above, the offeror shall--

(1) Prepare the price proposal in response to the solicitation using the changed practice for the period of performance for which the practice will be used; and

(2) Submit a description of the changed cost accounting practice to the Contracting Officer and the Cognizant Federal Agency Official as pricing support for the proposal.

(End of Provision)

K-15 252.204-7017 PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES--REPRESENTATION MAY/2021

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

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- (a) Definitions. Covered defense telecommunications equipment or services, covered mission, critical technology, and substantial or essential component, as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.
- (b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.
- (c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.
- (d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:
- The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.
- (e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:
- (1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).
- (2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.
- (3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).
- (4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

K-16	252.225-7010	COMMERCIAL DERIVATIVE MILITARY ARTICLE--SPECIALTY METALS COMPLIANCE CERTIFICATE	JUL/2009
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(a) Definitions. Commercial derivative military article, commercially available off-the-shelf item, produce, required form, and specialty metal, as used in this provision, have the meanings given in the clause of this solicitation entitled "Restriction on Acquisition of Certain Articles Containing Specialty Metals" (DFARS 252.225-7009).

(b) The offeror shall list in this paragraph any commercial derivative military articles it intends to deliver under any contract resulting from this solicitation using the alternative compliance for commercial derivative military articles, as specified in paragraph (d) of the clause of this solicitation entitled "Restriction on Acquisition of Certain Articles Containing Specialty Metals" (DFARS 252.225-7009). The offeror's designation of an item as a "commercial derivative military article" will be subject to Government review and approval.

(c) If the offeror has listed any commercial derivative military articles in paragraph (b) of this provision, the offeror certifies that, if awarded a contract as a result of this solicitation, and if the Government approves the designation of the listed item(s) as commercial derivative military articles, the offeror and its subcontractor(s) will demonstrate that individually or collectively they have entered into a contractual agreement or agreements to purchase an amount of domestically melted or produced specialty metal in the required form, for use during the period of contract performance in the production of each commercial derivative military article and the related commercial article, that is not less than the Contractor's good faith estimate of the greater of--

(1) An amount equivalent to 120 percent of the amount of specialty metal that is required to carry out the production of the commercial derivative military article (including the work performed under each subcontract); or

(2) An amount equivalent to 50 percent of the amount of specialty metal that will be purchased by the Contractor and its subcontractors for use during such period in the production of the commercial derivative military article and the related commercial article.

(d) For the purposes of this provision, the amount of specialty metal that is required to carry out the production of the commercial derivative military article includes specialty metal contained in any item, including commercially available off-the-shelf items, incorporated into such commercial derivative military articles.

(End of provision)

K-17	252.225-7966	PROHIBITION REGARDING RUSSIAN FOSSIL FUEL BUSINESS OPERATIONS?REPRESENTATION (DEVIATION 2024-00006, REVISION 1) (MAR 2024)	MAR/2024
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(a) Definitions. The terms business operations and fossil fuel company have the meanings given in the 252.225-7967 clause of this solicitation.

(b) Representation. By submission of an offer, the Offeror represents it is not, or that it does not knowingly have fossil fuel business operations with an entity or individual that is, 50 percent or more owned, individually or collectively, by

(1) An authority of the government of the Russian Federation; or

(2) A fossil fuel company that operates in the Russian Federation, except if the fossil fuel company transports oil or gas

(i) Through the Russian Federation for sale outside of the Russian Federation; and

(ii) That was extracted from a country other than the Russian Federation with respect to the energy sector of which the President has not imposed sanctions as of the date on which the contract is awarded.

(End of provision)

K-18	252.225-7973	PROHIBITION ON THE PROCUREMENT OF FOREIGN-MADE UNMANNED AIRCRAFT SYSTEMS--REPRESENTATION (DEVIATION 2020-00015)	MAY/2020
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(a) Prohibition. Section 848 of the National Defense Authorization Act for Fiscal Year 2020 (Pub. L. 116-92) prohibits DoD from using or procuring--

(1) An unmanned aircraft system (UAS), or any related services or equipment, that--

(i) Is manufactured in the Peoples Republic of China or by an entity domiciled in the Peoples Republic of China;

(ii) Uses flight controllers, radios, data transmission devices, cameras, or gimbals manufactured in the Peoples Republic of China or by an entity domiciled in the Peoples Republic of China;

(iii) Uses a ground control system or operating software developed in the Peoples Republic of China or by an entity domiciled in the Peoples Republic of China; or

(iv) Uses network connectivity or data storage located in, or administered by an entity domiciled in, the Peoples Republic of China; or

(2) A system for the detection or identification of a UAS, or any related services or equipment, that is manufactured--

(i) In the Peoples Republic of China; or

(ii) By an entity domiciled in the Peoples Republic of China.

(b) Representations. By submission of its offer, the Offeror represents that it will not provide or use--

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(1) A UAS, as described in paragraph (a)(1) of this provision, in the performance of any contract, subcontract, or other contractual instrument resulting from this solicitation; and

(2) A system for the detection or identification of a UAS, as described in paragraph (a)(2) of this provision, in the performance of any contract, subcontract, or other contractual instrument resulting from this solicitation.

(End of provision)

K-19	252.239-7098	PROHIBITION ON CONTRACTING TO MAINTAIN OR ESTABLISH A COMPUTER NETWORK UNLESS SUCH NETWORK IS DESIGNED TO BLOCK ACCESS TO CERTAIN WEBSITES--REPRESENTATION (DEVIATION 2021-00003)	APR/2021
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(a) In accordance with section 8116 of Division C of the Consolidated Appropriations Act, 2021 (Pub. L. 116-260), or any other Act that extends to fiscal year 2021 funds the same prohibitions, none of the funds appropriated (or otherwise made available) by this or any other Act for DoD may be used to enter into a contract to maintain or establish a computer network unless such network is designed to block access to pornography websites. This prohibition does not limit the use of funds necessary for any Federal, State, tribal, or local law enforcement agency or any other entity carrying out criminal investigations, prosecution, or adjudication activities, or for any activity necessary for the national defense, including intelligence activities.

(b) Representation. By submission of its offer, the Offeror represents that it is not providing as part of its offer a proposal to maintain or establish a computer network unless such network is designed to block access to pornography websites.

(End of provision)

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SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

This document incorporates one or more provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a provision may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the provision requires additional or unique information, then that information is provided immediately after the provision title.

	<u>Regulatory Cite</u>	<u>Title</u>	<u>Date</u>
L-1	52.204-7	SYSTEM FOR AWARD MANAGEMENT	OCT/2018
L-2	52.204-16	COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING	AUG/2020
L-3	52.204-22	ALTERNATIVE LINE ITEM PROPOSAL	JAN/2017
L-4	52.215-16	FACILITIES CAPITAL COST OF MONEY	JUN/2003
L-5	52.215-22	LIMITATIONS ON PASS-THROUGH CHARGES -- IDENTIFICATION OF SUBCONTRACT EFFORT	OCT/2009
L-6	52.222-24	PREAWARD ON-SITE EQUAL OPPORTUNITY COMPLIANCE EVALUATION	FEB/1999
L-7	52.247-45	F.O.B. ORIGIN AND/OR F.O.B. DESTINATION EVALUATION	APR/1984
L-8	52.247-46	SHIPPING POINT(S) USED IN EVALUATION OF F.O.B. ORIGIN OFFERS	APR/1984
L-9	252.204-7019	NOTICE OF NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS	NOV/2023
L-10	252.204-7024	Notice on the Use of the Supplier Performance Risk System (Mar 2023)	MAR/2023
L-11	252.215-7010	REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA--BASIC (MAY 2023)	MAY/2024
L-12	252.215-7013	SUPPLIES AND SERVICES PROVIDED BY NONTRADITIONAL DEFENSE CONTRACTORS (JAN 2023)	JAN/2023
L-13	252.215-7016	NOTIFICATION TO OFFERORS--POSTAWARD DEBRIEFINGS	MAR/2022
L-14	52.211-14	NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE, EMERGENCY PREPAREDNESS, AND ENERGY PROGRAM USE	APR/2008

Any contract awarded as a result of this solicitation will be [] DX rated order; [X] D0 rated order; certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR 700), and the Contractor will be required to follow all of the requirements of this regulation.

(End of Provision)

L-15	52.215-20	REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA (NOV 2021) -- ALTERNATE III (OCT 1997)	OCT/1997
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(a) Exceptions from certified cost or pricing data.

(1) In lieu of submitting certified cost or pricing data, offerors may submit a written request for exception by submitting the information described in the following paragraphs. The Contracting Officer may require additional supporting information, but only to the extent necessary to determine whether an exception should be granted, and whether the price is fair and reasonable.

(i) Identification of the law or regulation establishing the price offered. If the price is controlled under law by periodic rulings, reviews, or similar actions of a governmental body, attach a copy of the controlling document, unless it was previously submitted to the contracting office.

(ii) Commercial product and commercial service exception. For a commercial product and commercial service exception, the offeror shall submit, at a minimum, information on prices at which the same item or similar items have previously been sold in the commercial market that is adequate for evaluating the reasonableness of the price for this acquisition. Such information may include--

(A) For catalog items, a copy of or identification of the catalog and its date, or the appropriate pages for the offered items, or a statement that the catalog is on file in the buying office to which the proposal is being submitted. Provide a copy or describe current discount policies and price lists (published or unpublished), e.g., wholesale, original equipment manufacturer, or reseller. Also explain the basis of each offered price and its relationship to the established catalog price, including how the proposed price relates to the price of recent sales in quantities similar to the proposed quantities;

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(B) For market-priced items, the source and date or period of the market quotation or other basis for market price, the base amount, and applicable discounts. In addition, describe the nature of the market;

(C) For items included on an active Federal Supply Service Multiple Award Schedule contract, proof that an exception has been granted for the schedule item.

(2) The offeror grants the Contracting Officer or an authorized representative the right to examine, at any time before award, books, records, documents, or other directly pertinent records to verify any request for an exception under this provision, and the reasonableness of price. For items priced using catalog or market prices, or law or regulation, access does not extend to cost or profit information or other data relevant solely to the offerors determination of the prices to be offered in the catalog or marketplace.

(b) Requirements for certified cost or pricing data. If the offeror is not granted an exception from the requirement to submit certified cost or pricing data, the following applies:

(1) IN EXCEL FORMAT The offeror shall prepare and submit certified cost or pricing data, and data other than certified cost or pricing data, and supporting attachments in accordance with the instructions contained in Table 15-2 of FAR 15.408, which is incorporated by reference with the same force and effect as though it were inserted here in full text. The instructions in Table 15-2 are incorporated as a mandatory format to be used in this contract, unless the Contracting Officer and the Contractor agree to a different format and change this clause.

(2) As soon as practicable after agreement on price, but before contract award (except for unpriced actions such as letter contracts), the offeror shall submit a Certificate of Current Cost or Pricing Data, as prescribed by FAR 15.406-2.

(c) Submit the cost portion of the proposal via the following electronic media: IN EXCEL FORMAT.

(End of provision)

L-16 52.216-1 TYPE OF CONTRACT APR/1984

The Government contemplates award of a Firm-Fixed Price contract resulting from this solicitation.

(End of Provision)

L-17 52.233-2 SERVICE OF PROTEST SEP/2006

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from

BECKY BRADY
5202 MARTIN ROAD
REDSTONE ARSENAL, AL, 35898

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

L-18 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE FEB/1998

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

For FAR clauses: <https://www.acquisition.gov/>

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For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

(End of provision)

L-19 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS NOV/2020

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any DoD FAR SUPPLEMENT (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

FAR 33.103(D)(4) PROTESTS TO THE AGENCY

(A) REFERENCE. EXECUTIVE ORDER12979, AGENCY PROCUREMENT PROTESTS, ESTABLISHES POLICY ON AGENCY PROCUREMENT PROTESTS.

(B) PRIOR TO SUBMISSION OF AN AGENCY PROTEST, ALL PARTIES SHALL USE THEIR BEST EFFORTS TO RESOLVE CONCERNS RAISED BY AN INTERESTED PARTY AT THE CONTRACTING OFFICER LEVEL THROUGH OPEN AND FRANK DISCUSSIONS.

(C) THE AGENCY SHOULD PROVIDE FOR INEXPENSIVE, INFORMAL, PROCEDURALLY SIMPLE, AND EXPEDITIOUS RESOLUTION OF PROTESTS. WHERE APPROPRIATE, THE USE OF ALTERNATIVE DISPUTE RESOLUTION TECHNIQUES, THIRD PARTY NEUTRALS, AND ANOTHER AGENCYS PERSONNEL ARE ACCEPTABLE PROTEST RESOLUTION METHODS.

(D) THE FOLLOWING PROCEDURES ARE ESTABLISHED TO RESOLVE AGENCY PROTESTS EFFECTIVELY, TO BUILD CONFIDENCE IN THE GOVERNMENTS ACQUISITION SYSTEM, AND TO REDUCE PROTESTS OUTSIDE OF THE AGENCY:

(1) PROTESTS SHALL BE CONCISE AND LOGICALLY PRESENTED TO FACILITATE REVIEW BY THE AGENCY. FAILURE TO SUBSTANTIALLY COMPLY WITH ANY OF THE REQUIREMENTS OF PARAGRAPH (D)(2) OF THIS SECTION MAY BE GROUNDS FOR DISMISSAL OF THE PROTEST.

(2) PROTESTS SHALL INCLUDE THE FOLLOWING INFORMATION:

(I) NAME, ADDRESS, AND FAX AND TELEPHONE NUMBERS OF THE PROTESTER.

(II) SOLICITATION OR CONTRACT NUMBER.

(III) DETAILED STATEMENT OF THE LEGAL AND FACTUAL GROUNDS FOR THE PROTEST, TO INCLUDE A DESCRIPTION OF RESULTING PREJUDICE TO THE PROTESTER.

(IV) COPIES OF RELEVANT DOCUMENTS.

(V) REQUEST FOR A RULING BY THE AGENCY.

(VI) STATEMENT AS TO THE FORM OF RELIEF REQUESTED.

(VII) ALL INFORMATION ESTABLISHING THAT THE PROTESTER IS AN INTERESTED PARTY FOR THE PURPOSE OF FILING A PROTEST.

(VIII) ALL INFORMATION ESTABLISHING THE TIMELINESS OF THE PROTEST.

(3) ALL PROTESTS FILED DIRECTLY WITH THE AGENCY WILL BE ADDRESSED TO THE CONTRACTING OFFICER OR OTHER OFFICIAL DESIGNATED TO RECEIVE PROTESTS.

(4) IN ACCORDANCE WITH AGENCY PROCEDURES, INTERESTED PARTIES MAY REQUEST AN INDEPENDENT REVIEW OF THEIR PROTEST AT A LEVEL ABOVE THE CONTRACTING OFFICER; SOLICITATIONS SHOULD ADVISE POTENTIAL BIDDERS AND OFFERORS THAT THIS REVIEW IS AVAILABLE. AGENCY PROCEDURES AND/OR SOLICITATIONS SHALL NOTIFY POTENTIAL BIDDERS AND OFFERORS WHETHER THIS INDEPENDENT REVIEW IS AVAILABLE AS AN ALTERNATIVE TO CONSIDERATION BY THE CONTRACTING OFFICER OF A PROTEST OR IS AVAILABLE AS AN APPEAL OF A CONTRACTING OFFICER DECISION ON A PROTEST. AGENCIES SHALL DESIGNATE THE OFFICIAL(S) WHO ARE TO CONDUCT THIS INDEPENDENT REVIEW, BUT THE OFFICIAL(S) NEED NOT BE WITHIN THE CONTRACTING OFFICERS SUPERVISORY CHAIN. WHEN PRACTICABLE, OFFICIALS DESIGNATED TO CONDUCT THE INDEPENDENT REVIEW SHOULD NOT HAVE HAD PREVIOUS PERSONAL INVOLVEMENT IN THE PROCUREMENT. IF THERE IS AN AGENCY APPELLATE REVIEW OF THE CONTRACTING OFFICERS DECISION ON THE PROTEST, IT WILL NOT EXTEND GAOS TIMELINESS REQUIREMENTS. THEREFORE, ANY SUBSEQUENT PROTEST TO THE GAO MUST BE FILED WITHIN 10 DAYS OF KNOWLEDGE OF INITIAL ADVERSE AGENCY ACTION (4 CFR21.2(A)(3)).

(E) PROTESTS BASED ON ALLEGED APPARENT IMPROPRIETIES IN A SOLICITATION SHALL BE FILED BEFORE BID OPENING OR THE CLOSING DATE FOR RECEIPT

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OF PROPOSALS. IN ALL OTHER CASES, PROTESTS SHALL BE FILED NO LATER THAN 10 DAYS AFTER THE BASIS OF PROTEST IS KNOWN OR SHOULD HAVE BEEN KNOWN, WHICHEVER IS EARLIER. THE AGENCY, FOR GOOD CAUSE SHOWN, OR WHERE IT DETERMINES THAT A PROTEST RAISES ISSUES SIGNIFICANT TO THE AGENCYS ACQUISITION SYSTEM, MAY CONSIDER THE MERITS OF ANY PROTEST WHICH IS NOT TIMELY FILED.

(F) ACTION UPON RECEIPT OF PROTEST.

(1) UPON RECEIPT OF A PROTEST BEFORE AWARD, A CONTRACT MAY NOT BE AWARDED, PENDING AGENCY RESOLUTION OF THE PROTEST, UNLESS CONTRACT AWARD IS JUSTIFIED, IN WRITING, FOR URGENT AND COMPELLING REASONS OR IS DETERMINED, IN WRITING, TO BE IN THE BEST INTEREST OF THE GOVERNMENT. SUCH JUSTIFICATION OR DETERMINATION SHALL BE APPROVED AT A LEVEL ABOVE THE CONTRACTING OFFICER, OR BY ANOTHER OFFICIAL PURSUANT TO AGENCY PROCEDURES.

(2) IF AWARD IS WITHHELD PENDING AGENCY RESOLUTION OF THE PROTEST, THE CONTRACTING OFFICER WILL INFORM THE OFFERORS WHOSE OFFERS MIGHT BECOME ELIGIBLE FOR AWARD OF THE CONTRACT. IF APPROPRIATE, THE OFFERORS SHOULD BE REQUESTED, BEFORE EXPIRATION OF THE TIME FOR ACCEPTANCE OF THEIR OFFERS, TO EXTEND THE TIME FOR ACCEPTANCE TO AVOID THE NEED FOR RE-SOLICITATION. IN THE EVENT OF FAILURE TO OBTAIN SUCH EXTENSION OF OFFERS, CONSIDERATION SHOULD BE GIVEN TO PROCEEDING WITH AWARD PURSUANT TO PARAGRAPH (F)(1) OF THIS SECTION.

(3) UPON RECEIPT OF A PROTEST WITHIN 10 DAYS AFTER CONTRACT AWARD OR WITHIN 5 DAYS AFTER A DEBRIEFING DATE OFFERED TO THE PROTESTER UNDER A TIMELY DEBRIEFING REQUEST IN ACCORDANCE WITH 15.505 OR 15.506, WHICHEVER IS LATER, THE CONTRACTING OFFICER SHALL IMMEDIATELY SUSPEND PERFORMANCE, PENDING RESOLUTION OF THE PROTEST WITHIN THE AGENCY, INCLUDING ANY REVIEW BY AN INDEPENDENT HIGHER LEVEL OFFICIAL, UNLESS CONTINUED PERFORMANCE IS JUSTIFIED, IN WRITING, FOR URGENT AND COMPELLING REASONS OR IS DETERMINED, IN WRITING, TO BE IN THE BEST INTEREST OF THE GOVERNMENT. SUCH JUSTIFICATION OR DETERMINATION SHALL BE APPROVED AT A LEVEL ABOVE THE CONTRACTING OFFICER, OR BY ANOTHER OFFICIAL PURSUANT TO AGENCY PROCEDURES.

(4) PURSUING AN AGENCY PROTEST DOES NOT EXTEND THE TIME FOR OBTAINING A STAY AT GAO. AGENCIES MAY INCLUDE, AS PART OF THE AGENCY PROTEST PROCESS, A VOLUNTARY SUSPENSION PERIOD WHEN AGENCY PROTESTS ARE DENIED AND THE PROTESTER SUBSEQUENTLY FILES AT GAO.

(G) AGENCIES SHALL MAKE THEIR BEST EFFORTS TO RESOLVE AGENCY PROTESTS WITHIN 35 DAYS AFTER THE PROTEST IS FILED. TO THE EXTENT PERMITTED BY LAW AND REGULATION, THE PARTIES MAY EXCHANGE RELEVANT INFORMATION.

(H) AGENCY PROTEST DECISIONS SHALL BE WELL-REASONED, AND EXPLAIN THE AGENCY POSITION. THE PROTEST DECISION SHALL BE PROVIDED TO THE PROTESTER USING A METHOD THAT PROVIDES EVIDENCE OF RECEIPT.

*** END OF NARRATIVE L0001 ***

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SECTION M - EVALUATION FACTORS FOR AWARD

This document incorporates one or more provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a provision may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the provision requires additional or unique information, then that information is provided immediately after the provision title.

THIS DOCUMENTS INCORPORATES ONE OR MORE PROVISIONS BY REFERENCE, WITH THE SAME FORCE AND EFFECTS AS IF THEY WERE GIVEN IN FULL TEXT. UPON REQUEST, THE CONTRACTING OFFICER WILL MAKE THEIR FULL TEXT AVAILABLE. ALSO, THE FULL TEXT OF A PROVISION MAY BE ACCESSED ELECTRONICALLY AT THESE ADDRESSES:

FOR FAR CLAUSES: [HTTPS://WWW.ACQUISITION.GOV/](https://www.acquisition.gov/)
FOR DFARS CLAUSES: [HTTPS://WWW.ACQ.OSD.MIL/DPAP/DARS/DFARSPGI/CURRENT.HTML](https://www.acq.osd.mil/dpap/dars/dfarspgi/current.html)

EVALUATION CRITERIA

1. MINIMUM TECHNICAL REQUIREMENTS.
TO BE TECHNICALLY ACCEPTABLE AND THUS, ELIGIBLE FOR AWARD, A PROPOSAL MUST CONFORM TO ALL SOLICITATION REQUIREMENTS, SUCH AS TERMS ANDCONDITIONS, REPRESENTATIONS AND CERTIFICATIONS, AND TECHNICAL REQUIREMENTS PROVIDED WITHIN ALL SECTIONS OF THIS SOLICITATION AND/OR WITHIN ITS ATTACHED ADDENDA. PROPOSALS RECEIVING A TECHNICAL RATING OF UNACCEPTABLE WILL BE INELIGIBLE FOR AWARD.
2. PRICE.
IN ADDITION TO MEETING THE SOLICITATIONS TECHNICAL AND QUANTITY INCREMENT OR RANGE REQUIREMENTS ABOVE AND COST AND PRICING REQUIREMENTSBELOW, THE GOVERNMENT WILL EVALUATE A PROPOSALS PRICING FOR REASONABLENESS. EVALUATION OF A PROPOSAL'S PRICING WILL NOT OBLIGATE THEGOVERNMENT TO ORDER THE ESTIMATED QUANTITIES OR TO DISTRIBUTE ORDERS IN THE MANNER EVALUATED. THE GOVERNMENT MAY REJECT A PROPOSAL AS UNACCEPTABLE, IF ITS PRICING IS DETERMINED TO BE MATERIALLY UNBALANCED.
3. COST AND PRICING DATA.
OFFERORS MUST PROVIDE ALL COST OR PRICING INFORMATION REQUIRED BY FAR 15.4. FAILURE OF A PROPOSAL TO PROVIDE COST OR PRICING INFORMATION REQUIRED BY FAR 15.4 WILL RESULT IN SAID PROPOSAL BEING DEEMED UNACCEPTABLE, AND THUS, INELIGIBLE FOR AWARD.

*** END OF NARRATIVE M0001 ***